

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 09/10/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. DO NOT INCLUDE ARGUMENT IN THIS EMAIL – LIST THE TOPICS ONLY.** Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C24-03556 CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN SETTLEMENT CONFERENCE W/ SETTLEMENT MENTOR FILED BY:

TENTATIVE RULING:

Settlement conference vacated by Notice of Conditional Settlement of the Entire Case filed August 31, 2026.

2. 8:31 AM CASE NUMBER: C25-02637 CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC, *FURTHER CASE MANAGEMENT CONFERENCE FILED BY:
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TENTATIVE RULING:

Given the ruling below, Plaintiff Robin Fernandez and counsel for Veg San Ramon LLC are ordered to appear. Relieved counsel for Plaintiff is *not* ordered to appear but is ordered to forward all required materials to Plaintiff or her next attorney.

3. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to March 10, 2027, at 8:30 am in Department 10.

4. 9:00 AM CASE NUMBER: C26-00886
CASE NAME: TIJUANA JACKSON VS. MERCEDES-BENZ USA LLC, A LIMITED LIABILITY COMPANY
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to September 10, 2027, at 8:30 am in Department 10.

Law & Motion

5. 9:00 AM CASE NUMBER: C24-00180
CASE NAME: STACY SMITH VS. SHIFTMED, LLC
*HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

The Court has reviewed the declaration of Natalie Hernandez and authorizes the release of the final 5% of the funds.

6. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
*HEARING ON MOTION IN RE: STRIKE AND/OR TAX DEFENDANT PAVEL YEFANAU'S 4/1/26
MEMORANDUM OF COSTS
FILED BY: MASCHMEIER, STUART

TENTATIVE RULING:

The Motion was withdrawn.

7. 9:00 AM CASE NUMBER: C24-02784
CASE NAME: CYNTHIA RODRIGUEZ VS. RICHMOND SANITARY SERVICE, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT
FILED BY: RICHMOND SANITARY SERVICE, INC.

TENTATIVE RULING:

The Motion for Leave to File Cross Complaint is unopposed. The Motion is **granted**. Defendant shall file the Cross Complaint within 5 business days and serve it with diligence.

8. 9:00 AM CASE NUMBER: C25-00751
CASE NAME: DEAN LANGSTON VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: LANGSTON, DEAN
TENTATIVE RULING:

Plaintiff Dean Langston filed this Song-Beverly action on March 17, 2025 against General Motors, LLC. The case resolved at mediation on October 16, 2025, but Langston opted to seek fees through this Motion, filed April 27, 2026. GM opposes.

Discussion

Timeliness of Motion

GM first argues that the motion is untimely, under California Rule of Court 3.1702, because it was filed 193 days after settlement. Rule 3.1702 requires a Motion for Attorney's Fees within the same time frame as an appeal—here 180 days. While there was no judgment, the case did resolve by settlement. California Rule of Court 3.1385 required Langston to “immediately” file written notice of settlement. Langston failed to do so, instead waiting until April 23, 2026 to do so, which was 189 days later. As discussed in *Hatlevig v. General Motors LLC*, 118 Cal.App.644, 649-650, once plaintiff files a notice of settlement, the plaintiff *must* dismiss the case within 45 days unless there is good cause not to do so, pursuant to California Rule of Court 3.1385(b). The Motion for Attorney's fees is due no later than 180 days after that dismissal date. *Hatlevig* applied those deadlines even where the dismissal did not occur as it should have. Had Langston filed a Notice Settlement in a timely manner, the motion would have been due no later than 225 (45+180) days later. Assuming that “immediately” means the next day, the earliest date that the motion could have been untimely would therefore have been May 30, 2026. He filed April 28, 2026. Although in no way was Langston diligent, and certainly counsel was not compliant with Rule 3.1702, the Motion itself was not untimely.

Attorney's Fees

Rates

GM also takes issue with Plaintiff's proposed rates. GM presents only an unsubstantiated statement that Los Angeles attorney rates are higher than those of Contra Costa County. GM does not present any evidence of the rates it pays its own counsel. On this record, Langston has presented sufficient evidence to support his requested rates.

Billings

The fee amounts, however, are a different story. The Court agrees that counsel cannot recover the fees requested for these boilerplate actions. Use of the same complaint, meet and confer correspondence, and discovery materials is not necessarily disfavored; nor, however, does it merit fee

recovery as if it were original work. After reviewing the documents submitted by both parties, the Court agrees that a reduction in hours is appropriate. [2 hours (\$750) → 1 hour (\$375)] Moreover, the substantial interactions between counsel and the plaintiff are hard to fathom, given the simple nature of the dispute and the quick resolution. [3.5 hours (\$2,211.50) → 1.75 hours (\$1,555.75)] There is substantial work billed that is clerical in nature or overblown for what it could possibly have entailed. [.4 hours (\$142.50) → 0 hours (\$0)] The Court does not understand why counsel was required for the vehicle surrender. Counsel states that a vehicle *inspection* may merit counsel attendance, but this was not a vehicle inspection. [4.4 hours (\$2,420) → 0 hours] Finally, the anticipated time for the reply briefing on this motion and a motion to tax costs (not to mention the excessive time spent on the initial motion itself) is not compensable. Counsel can recover only for reasonable time *actually* spent. Even the anticipated travel is far too speculative, given the practice of Southern California counsel regarding remote appearances. In reply, counsel only offered substantiation of 4 hours for reply, which still appears excessive considering the product and noted repetitive nature of these arguments (by GM as well). The Court will reduce to a reasonable amount. [20.7 hours (\$11,285.50) → 5 hours (\$1,875)]

Multiplier

There is no reason for *any* multiplier here. There is no showing that this work was complex, risky, or required counsel to forgo other work.

The Court agrees with GM's rationale and calculation for hours to be reduced, except the pre-engagement work. The Court will therefore reduce fees in the amount of \$13,003.75, for a total of \$9,349.75.

Costs

GM also objects to certain requested costs. Although the Court has concerns about the propriety of some of the costs in the Memorandum, no Motion to Tax Costs was filed within 15 days, as required by California Rule of Court 3.1700(b). Even if the Court were to construe the overlong pages of GM's brief as a Motion to Tax Costs, it was untimely. The clerk must, pursuant to Rule 3.1700(b)(4) enter the costs on the judgment.

Procedural Issues

Langston cited several unpublished superior court cases. These are absolutely unciteable. The only reason the Court can receive any of these is for demonstration of reasonable rates. All other citations—e.g. page 9 of Langston's reply brief—are in violation of California Rule of Court 8.1115.

Langston also filed a supplemental declaration as an attachment to the Reply brief. This is not appropriate, as it does not allow the Court to reasonably consider all of the papers.

GM's opposition brief exceeded the page limit. The final two pages address costs, which GM did not timely contest in any event, as stated above.

9. 9:00 AM CASE NUMBER: C25-02287
CASE NAME: CITY OF CONCORD VS. SEKK INVESTMENTS LLC
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**
FILED BY: CITY OF CONCORD
TENTATIVE RULING:

Plaintiff City of Concord seeks a Preliminary Injunction against Defendants Sekk Investments, LLC and Steven Pinza for violations on a property they own in Concord.

The basic facts at this stage in the proceedings—at least up until the point of the filing of this Motion for Preliminary Injunction—are uncontested. On March 30, 2023, after inspections pursuant to warrants, the City issued their first Notice of Violation on the subject real property located at 1751 Diane Court. There were seven relevant violations. On April 29, 2024, the City issued their second Notice of Violation on the subject real property. On May 29, 2025, the City issued a Notice and Order to Comply to Defendants. On July 23, 2025, the City issued another Notice and Order to Comply. On August 25, 2025, the City issued yet another Notice and Order to Comply to Defendants.

In 2025, the City again inspected the property. On September 4, 2025, the City served a Notice of Violation and Inspection Results for the Property related to these new inspections. Again, there were seven relevant violations. On October 15, 2025, Defendants are alleged to have dumped truckloads of garbage onto a public street. The City further alleges this was in retaliation for the City's actions.

Although Defendants submitted administrative appeal documents, they did not pay the fees requested by the City, either initially or after given notice of the need for additional fees.

Standard

The City seeks injunctive relief on its second, fourth, and fifth causes of action for violation of the Concord Municipal Code. (Code Civ. Pro. § 527.) “Where a governmental entity seeking to enjoin the alleged violation of an ordinance which specifically provides for injunctive relief establishes that it is reasonably probable it will prevail on the merits, a rebuttable presumption arises that the potential harm to the public outweighs the potential harm to the defendant. If the defendant shows that it would suffer grave or irreparable harm from the issuance of the preliminary injunction, the court must then examine the relative actual harms to the parties.” (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 72.) A showing of “substantial economic loss” will not suffice to show irreparable harm as long as a business may continue doing its business. (*Id.* at 75.)

Timeliness

Defendants first argument is that the City belied its need for a preliminary injunction by not filing immediately and by not seeking ex parte relief to advance the hearing. The delay was not substantial and in any event does not outweigh the City's demonstration of irreparable harm of *ongoing* damage. (*Nutro Prods., Inc. v. Cole Grain Co.* (1992) 3 Cal.App.4th 860, 866.)

The Declaration of Jeff Hughes

The core of Defendant's opposition is the Declaration of Jeff Hughes, to which the City objects. Most objections relate to foundation and hearsay. Although not all objections would be sustained, at least one objection to each and every paragraph objected to is valid. The Court therefore sustains objections to paragraphs 3(d), 5-17, and 18, as well as Figures 1-4. The Declaration contains conclusions of law, hearsay, and foundationless photographs. Although it is possible that Mr. Hughes could provide certain relevant testimony, this declaration fails entirely to support Defendants' arguments. In addition to the issues with the Declaration, it does not answer the *permitting* questions raised by the City. Defendants never actually rebut that their work was unpermitted. Without permits and inspections, it cannot be deemed compliant. (See Concord Municipal Code § 15.10.010; Cal. Code Regs., tit. 24, § 105.1 (California Building Code); Declaration of Thomas Davis.)

Merits

Defendants argue that because the City did not acknowledge their cross-complaint, the City failed to establish reasonably probability that it will prevail on the merits. In doing so, Defendants directly challenge counsel's candor. The Court finds no violations of the duty of candor. Defendants' cross-complaint does not appear relevant to the issues of this Preliminary Injunction. Indeed, Defendants themselves never explain how the cross-complaint is relevant. Its mere existence does not lessen the alleged harms. For the Court to understand why the cross-complaint—which appears at heart to be a general challenge on fee-collection by the City—affects this Preliminary Injunction, the Defendants would have to have drawn a connection, which they never do.

The City has made a *prima facie* case of code violations, substandard building conditions, irreparable harm to tenants. Defendants never directly challenge the City's arguments that the alleged violations are not and were not violations. Through the Declaration of Jeff Hughes, they have passing reference to the alleged conditions not being dangerous, but otherwise their *sole* arguments relate to timeliness, the *existence* of their cross-complaint (but never its merits) and their purported remediation. Unsupported statements regarding the conditions of the premises do not rebut the City's arguments. Defendants never even mention the illegal dumping violation.

Conclusion

At the end of the day, the City's contentions are, essentially, un rebutted. The Preliminary Injunction will be **granted**.

10. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES L. ARRASMITH, ESQ.
FILED BY:
TENTATIVE RULING:

The Motion is **granted**. Relieved counsel for Plaintiff is ordered to forward all required materials to Plaintiff or her next attorney.

11. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
*HEARING ON MOTION IN RE: SEAL DECLARATIONS IN SUPPORT OF MOTION TO COMPEL
ARBITRATION THAT CONTAIN CONFIDENTIAL INFORMATION
FILED BY: CHU, M.D., LINDA
TENTATIVE RULING:

This Motion is unopposed. Good cause shown, it is **granted**.

12. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: CHU, M.D., LINDA
TENTATIVE RULING:

Defendants Kaiser Foundation Hospitals, Kaiser Foundation Health Plan, Inc., The Permanente Medical Group, Inc. and Linda Chu, M.D.'s motion to compel arbitration is **denied**.

Plaintiff Cylus, a minor, is suing through her guardian ad litem for medical injuries caused soon after his birth on November 10, 2017. Plaintiff's guardian ad litem is his mother Gia. Plaintiff has brought one claim for medical negligence against all the defendants. Gia was also a minor when she gave birth to Cylus.

The Kaiser Defendants and Dr. Chu have brought a motion to compel arbitration. The arbitration clause at issue here comes from an arbitration clause in the Medi-Cal agreement under which Gia and later Cylus were enrolled to receive medical care from Kaiser.

Gia was enrolled in Kaiser starting from August 1, 2012 to January 1, 2024. (Deniz dec. ¶3 and ex. C.) Cylus was enrolled in Kaiser automatically in the month he was born and the month after birth. (Deniz Dec. ¶ 4.) Cylus was then enrolled in Kaiser from March 1, 2018 to July 1, 2025. (Deniz dec. ¶ 4 and ex. D.)

Records from CCHP show two phone calls regarding Plaintiff and/or his mother's healthcare coverage. (Pierrou dec. ex. N.) The Court sustained Plaintiff's objections to these records and therefore, the Court will not consider them further.

The 2017-2018 Medi-Cal Member handbook includes an arbitration clause. (Velarde dec. ex. A at p. 92-95.) The arbitration clause requires members to use binding arbitration for malpractice claims. (Id. at 92.) The 2012-2023 Medi-Cal Member handbook includes a similar arbitration clause. (Velarde dec. ex. B. at 83-84.)

The arbitration clause at issue here covers the disputes alleged in the complaint for

malpractice. The first question is whether Plaintiff can be bound by this arbitration agreement. There is no showing that Plaintiff, Gia or Melissa signed an arbitration clause purporting to agree to arbitration for Gia and/or Plaintiff.

Code of Civil Procedure section 1281.2 allows a party to compel arbitration based upon a written arbitration agreement. That section does not require that the arbitration agreement be signed.

In *Madden v. Kaiser Found. Hosps.* (1976) 17 Cal.3d 699, 703-704, 708 the California Supreme Court held that an employer, acting as agent of its employees, has implied authority to agree to binding arbitration of malpractice claims arising under a health services plan it negotiates as part of an employee benefit package. The Court held that “an agent or other fiduciary who contracts for medical treatment on behalf of his beneficiary retains the authority to enter into an agreement providing for arbitration of claims for medical malpractice.” (*Id.* at 709.)

Actual knowledge of the arbitration provision is not required. (*Id.* at 709 fn. 11.) However, the cases in this area require some evidence showing that the arbitration clause was given to the member, usually done by mailing a copy of the evidence of coverage and related documents.

Kaiser contracts with the California Department of Health Care Services (DHCS) regarding its Medi-Cal coverage. Kaiser also previously contracted with Contra Costa Health Plan Member Services (CCHP) regarding Medi-Cal. (Velarde dec. ¶1.) CCHP contracts with DHCS to arrange for health care services for eligible Medi-Cal beneficiaries in Contra Costa County. Until 2024, CCHP contracted with Kaiser, as a Medi-Cal managed care plan, to provide and arrange for health care services. (Velarde dec. 2.) Kaiser member handbooks are required to follow certain rules and go through regulatory approval by DHCS or CCHP before they can be distributed to members. (Velarde dec. ¶¶3-4.)

DHCS and/or CCHP exclusively managed and carried out the process by which Gia and Cylus were enrolled as Medi-Cal members. Kaiser does not enroll Medi-Cal members directly. Kaiser must accept members that are eligible as Medi-Cal beneficiaries and meet certain criteria. Once a person completes the Medi-Cal enrollment process with DHCS (or its’ contractors) then Kaiser must accept them as members. (Deniz dec. ¶15.)

Kaiser’s evidence also shows that they mailed a copy of the 2016 annual medi-cal member notice and portions of the 2016-2017 CCHP member handbook to Gia’s household in 2016, which included information on the binding arbitration clause. (Guha dec. ¶13.) There is also evidence that Gia’s household was mailed other documents including the arbitration clause after the malpractice at issue here, but it is not clear how those would bind Plaintiff.

The Court finds that Kaiser’s evidence is sufficient to show that Kaiser contracts with DHCS to provide health care services for Medi-Cal recipients and that DHCS or CCHP approved the member handbook that contained the arbitration clause. Following the reasoning in *Madden*, DHCS and/or

CCHP were acting as the agent for members receiving health care services under Medi-Cal and that those government agencies could agree to an arbitration clause on behalf of the Medi-Cal members.

The Court finds then that Kaiser has met its initial burden of showing that a valid arbitration agreement exists. The burden now shifts to Plaintiff to show a reason why the arbitration agreement is not valid.

Plaintiff argues that neither Gia nor Melissa remember getting a copy of the member handbook. (Melissa dec. ¶6; Gia dec. ¶7.) These general statements are insufficient to show that Kaiser did not mail out the member handbook.

Health & Safety Code section 1363.1

Plaintiff argues that Kaiser did not comply with Health and Safety Code section 1363.1 and as such is prohibited from enforcing the arbitration clause at issue here. Section 1363.1 requires that health care plans with binding arbitration must include a disclosure of binding arbitration and the waiver of a right to a jury trial. The required disclosure must be immediately before the signature line provided for the individual enrolling in the health care service plan. (Health & Safety section 1363.1.) State regulations require that that evidence of coverage, disclosure forms and marketing brochures comply with section 1363.1. (Cal. Code Regs., tit. 22, § 53881.)

After *Madden*, Health and Safety Code section 1363.1 was enacted to ensure that members had notice of arbitration and knowing waived the right to a jury trial. “The purpose of section 1363.1 is to disclose the requirement to arbitrate *and* to ensure a knowing waiver of the right to a jury trial. The signature of the ‘individual enrolling in the health service plan’ is required in order to ensure a knowing waiver of his or her rights.” (*Malek v. Blue Cross of California* (2004) 121 Cal.App.4th 44, 72.)

“Rather than abrogating the *Madden* decision by requiring an individual waiver of right to jury trial by a person enrolling in a health care service plan requiring binding arbitration, the Legislature extended to enrollees the more limited protection of disclosure.” (*Viola v. Dep’t of Managed Health Care* (2005) 133 Cal.App.4th 299, 312.) An entity is “empowered under *Madden* to negotiate a waiver of jury trial on behalf of” enrollees only “so long as the plan complies with the disclosure requirements of section 1363.1.” (*Id.* at pp. 312, 314.)

It is undisputed that when Gia and then Cylus were enrolled in Kaiser no one signed as required section 1363.1 disclosure and there is no evidence that Melissa, Gia or Cylus was given the disclosure when enrolling Gia and/or Cylus. Defendants argue, however, that section 1363.1 is preempted by two federal laws.

Defendants argue that the FAA preempts section 1363.1 because it treats arbitration clauses differently from other contracts. However, the McCarran-Ferguson Act, 15 USCS § 1012, prevents federal laws that do not specifically relate to the business of insurance from invalidating a state law

enacted for the purpose of regulating the business of insurance. Most California courts have rejected this preemption argument and the Court finds them persuasive. (*Imbler v. PacifiCare of Cal., Inc.* (2002) 103 Cal. App. 4th 567, 576–77; *Pagarigan v. Superior Court* (2002) 102 Cal.App.4th 1121, 1134; *Smith v. PacifiCare Behavioral Health Plan of Cal., Inc.* (2001) 93 Cal.App.4th 139, 143.) Therefore, the Court finds that section 1363.1 is not preempted by the FAA.

Defendants also argue that federal Medicaid law preempts section 1363.1. Preemption includes when “[a] state law actually conflicts with federal law ‘where it is impossible for a private party to comply with both state and federal requirements [citation], or where state law “stands as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress.” ’ [Citation.]” (*Olszewski v. Scripps Health* (2003) 30 Cal.4th 798, 815.)

“In construing [a state] statute, “‘our fundamental task is “to ascertain the intent of the lawmakers so as to effectuate the purpose of the statute.”’” [Citation.] ‘We begin by examining the statute’s words, giving them a plain and commonsense meaning. [Citation.] We do not, however, consider the statutory language “in isolation.” ... [W]e construe the words in question “in context, keeping in mind the nature and obvious purpose of the statute”’ [Citation.] We also ‘construe every statute with reference to the whole system of law of which it is a part, so that all may be harmonized and anomalies avoided.’ [Citations.] Further, in the preemption context, we adhere to ‘the rule that courts should, if reasonably possible, construe a statute “in a manner that avoids *any* doubt about its [constitutional] validity.”’ [Citations.]” (*Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, 330.)

Under the Affordable Care Act, agencies must accept applications for health care via the internet, telephone, mail, in person or other commonly available electronic means. (42 C.F.R. § 435.907; see also, Welf. & Inst. Code, § 15926 [listing similar requirements].) Applications must be signed under penalty of perjury, however, “[e]lectronic, including telephonically recorded, signatures and handwritten signatures transmitted via any other electronic transmission must be accepted.” (42 C.F.R. § 435.907 (f).)

California also allows for electronic signatures. DHCS issued a letter in 2019 that states county departments must allow telephonic signatures when enrolling Medi-Cal members. (Cal. Dept. of Health Care Services, All County Welfare Directors Letter No. 19-17, Telephonic or Electronic Signature Capability (June 21, 2019), currently found at <https://www.dhcs.ca.gov/wp-content/uploads/2025/10/c19-17.pdf>.) DHCS pointed to two portions of the Welfare and Institutions Code that specifically permitted telephonic signatures (sections 14005.37, 14014.5) and the rules in the Code of Federal Regulations allowing telephonically recorded signatures.

The ACA also required that there be one streamlined form used to apply state subsidized healthcare programs, which would include Medi-Cal. (42 U.S.C. § 18083.) Eligible individuals are enrolled automatically if they fail to select a plan. (42 U.S.C. § 1396u-2(a)(4)(D); 22 C.C.R. section

53883(a).)

In 2002, *Pagarigan* held that section 1363.1 as not preempted by Medicare. (*Pagarigan, supra*, 102 Cal.App.4th at 1149.) *Pagarigan* was looking at an older version of the law in the context of Medicare, not Medi-Cal. In dicta, the court also noted that the 2000 amendments applying to Medicare marketing materials would preempt state law on Medicare marketing materials in the future. (*Id.* at 1150.) Here, however, Defendants are not arguing that the rules for Medicare marketing (42 U.S.C. § 1395w-21 (h)(5)) are the basis of preemption when someone enrolls in Medi-Cal.

There is no other published state court opinion addressing this preemption issue. There are a few federal district court opinions that have considered this issue and found Medicaid preempts section 1363.1. (*Wills v. Kaiser Found. Hosps.* (N.D.Cal. Nov. 6, 2025, No. 25-cv-01948-LB) 2025 LX 478387, at *10; *Hunter v. Kaiser Found. Health Plan, Inc.* (N.D.Cal. 2020) 434 F. Supp. 3d 764, 772; *Tidwell v. United States HHS* (N.D.Cal. Mar. 10, 2026, No. 25-cv-04777-ASK) 2026 LX 123792, at *8; see also, *Winninger v. Scott* (N.D.Cal. July 5, 2022, No. 21-cv-04689-HSG) 2022 LX 34143, at *4 [considering 10 C.C.R. 6470.]) These federal cases are not binding, and the Court is not convinced by the analysis provided in these cases that section 1363.1 is preempted.

The purpose of section 1363.1 is to disclose the requirement to arbitrate and to ensure a knowing waiver of the right to a jury trial. Its language suggests that the disclosure would be on a written form, however, it does not contemplate enrollment for healthcare services over the phone. Current state and federal law allows for telephonically recorded signatures as part of enrollment (and redeterminations of eligibility) in Medi-Cal. Section 1363.1 can be construed as allowing a verbal disclosure and a recorded telephonic signature when a person enrolls in Medi-Cal over the phone. This interpretation is consistent with the purpose of the statute and this construction avoids doubts about preemption.

The Court finds that section 1363.1 is not preempted in this situation. Federal Medicaid law requires one streamlined application and requires that states allow for enrollment over the telephone. But these rules do not conflict with compliance under section 1363.1 when it is interpreted to allow a verbal disclosure and an electronic recording of the signature by the enrollee.

Plaintiff argues that California regulations require specific disclosure language regarding Kaiser and arbitration when a party enrolls through Covered California. (10 C.C.R. § 6470 (f)(2)(B).) However, this regulation is part of the “California Health Benefit Exchange”, also known as Covered California, and it is not clear that this regulation applies to requests for enrollment outside of Covered California. (10 C.C.R. § 6410.)

Other Defenses to Enforcement

Plaintiff also argues that he is a minor and permitted to disaffirm contracts and he does so with the arbitration clause. (Fam. Code §§ 6700, 6710 (a minor may disaffirm his contracts).) Although

the Court finds that section 1363.1 was not complied with in this case, it has also provided its analysis on this issue in order to include a full discussion of the issues raised in this motion.

Plaintiff notes that a minor cannot disaffirm a contract for medical services that includes an arbitration clause, but only where the contract is signed by the minor's parent or legal guardian. (Code Civ. Proc., § 1295 (d).) Here, there is no signature by Gia or Melissa binding Plaintiff to arbitration.

In *Doyle v. Giuliucci* (1965) 62 Cal.2d 606, 610 the court held that the contract between a minor plaintiff's father and a medical defendant provided for arbitration of her claim and that she was bound by that agreement. (*Id.* at 610.) The court explained that the contract for medical services was between the father and the provider and that the minor was a third-party beneficiary of the contract.

The Court finds that Plaintiff has not shown he has a right to disaffirm the contract for medical care because he was a third-party beneficiary of the agreement between Kaiser and DHCS to provide medical care to Plaintiff.

Defendant Chu

Defendants argue that Chu was a Kaiser doctor at the time of the alleged malpractice, however, the evidence on that point was properly objected to by Plaintiff. It seems likely that Kaiser will be able to provide additional evidence that Chu was a Kaiser doctor. Further, it is not clear that the parties really dispute that Chu should remain in state court if the parties are required to arbitrate their dispute with Kaiser. Since the Court finds that section 1363.1 was not complied with in this case, there is no need to resolve this issue regarding whether Chu was a Kaiser doctor at the relevant time.

Evidentiary Rulings

The Court rules on Plaintiff's objections as follows:

1. Sustained.
2. Sustained.
3. Sustained.
4. Sustained. Printouts from 2026 are not relevant to the time periods at issue in this motion.
5. Sustained. A printout from 2023 is not relevant to the time periods at issue in this motion.
6. Sustained.
7. Sustained as to "always". Otherwise overruled. The Court interprets this statement to apply from 2010 to the present.
8. Overruled.
9. Overruled.
10. Overruled.
11. Overruled.
12. Overruled.

- 13. Overruled.
- 14. Overruled.
- 15. Overruled.
- 16. Overruled.
- 17. Overruled.
- 18. Overruled.
- 19. Overruled.
- 20. Sustained.

13. 9:00 AM CASE NUMBER: C26-00456
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: MOTION TO CONSOLIDATE CASES
FILED BY:
TENTATIVE RULING:

The Court denies this Motion without prejudice for lack of proof of service on defendants in both matters.

14. 9:00 AM CASE NUMBER: C26-00702
CASE NAME: ABDUL KHAMOSH VS. ZAKIA KHAMOSH WAKILY
***HEARING ON MOTION IN RE: STRIKE PURSUANT TO CCP 425.16**
FILED BY: KHAMOSH WAKILY, ZAKIA
TENTATIVE RULING:

Defendants' special motion to strike pursuant to Code of Civil Procedure section 425.16 is **denied**.

Background

Plaintiff Abdul Salam Khamosh alleges that he is a prominent businessman in the Afghan-American community who operates multiple gas station businesses. (Plaintiff's February 27, 2026 Complaint ["Compl."] ¶ 7.) Between 2008 and 2013, Plaintiff personally financed, advanced, and managed his late father Dr. Mohammed Aslam Khamosh's legal claims against the United States government regarding ancestral land in Kapisa Province, Afghanistan, incurring hundreds of thousands of dollars in out-of-pocket expenses and over \$1 million in lost income. (Compl. ¶¶ 17-23.) In recognition of these personal and financial sacrifices, his father executed a California Statutory Will on January 25, 2013, devising his entire estate to Plaintiff. (Compl. ¶ 24.) Following the father's death in January 2016, the federal claim settled for \$195,000, which Plaintiff alleges constituted the sole asset of the estate. (Compl. ¶¶ 25-26.) Plaintiff petitioned for probate in Contra Costa County Superior Court under Case No. P16-00362. (Compl. ¶ 28.) Defendant Zakia Khamosh Wakily ("Wakily") filed an objection and will contest strictly limited to five grounds: improper statutory execution/attestation, lack of testamentary intent, revocation by a purported living trust, mistake of fact regarding the purpose of the document, and undue influence. (Compl. ¶ 29.) The 2016 will contest contained no allegations of criminal forgery, fraud, theft of estate assets, or overseas bank embezzlement. (*Id.* ¶ 29; Defs.' RJN, Exh. 2.) In response to the contest, Defendants Mohammed Omar Khamosh ("Omar") and Najia Khair ("Khair") submitted sworn declarations under penalty of perjury attesting that the will reflected their father's intent, that the estate possessed no assets other than the \$195,000 federal settlement, and that Wakily's accusations against Plaintiff were "vicious lies" that were "totally untrue." (Compl. ¶¶

30-31; Defs.' RJN, Exh. 5.) Wakily subsequently dismissed her contest, and on December 8, 2016, the probate court admitted the will and appointed Plaintiff executor with full authority. (Compl. ¶¶ 33-34.)

Plaintiff alleges that nearly a decade after the probate proceedings concluded and without any active or contemplated litigation pending, Defendants initiated a "coordinated campaign of spreading false and defamatory statements against [Plaintiff] throughout the Afghan-American community." (Compl. ¶¶ 1, 4, 37.) This campaign was not comprised of statements made in court or repetitions of the 2016 contest, but rather new, accusations that Plaintiff forged his father's signature on the will, stole estate assets, received millions of dollars in illicit lease payments from the family land, and embezzled \$50 million from a nonexistent Turkish bank account to purchase real property and capitalize his thirteen gas station businesses. (Compl. ¶¶ 1, 4, 37-39, 46.) Specifically, Plaintiff alleges that at a May 2025 family gathering in Afghanistan, Defendants insisted to assembled relatives and community members that Plaintiff was collecting millions in lease payments from the ancestral land. (Compl. ¶¶ 45-46.) On January 17, 2026, at a memorial prayer gathering in Hayward attended by approximately 200 people, Omar publicly accused Plaintiff of theft, will forgery, and stealing \$50 million from Turkey, falsely claiming to possess documentary proof. (Compl. ¶¶ 41-43.) Wakily also left defamatory voicemails for Plaintiff and his sister asserting similar accusations. (Compl. ¶ 48.) Plaintiff further alleges that Defendants ignored a February 3, 2026 formal cease-and-desist letter demanding production of the purported documentation (Compl. ¶¶ 51-52), and engaged in extrajudicial self-help by traveling to Afghanistan to work through the Taliban regime to strip Plaintiff's name from the land title and register themselves as heirs. (Compl. ¶¶ 5, 44, 49-50.) Plaintiff claims this conduct caused severe emotional distress, serious physical illness, reputational injury, and substantial lost business opportunities. (Compl. ¶¶ 53-55.)

The verified complaint asserts eleven causes of action based on these allegations: (1) defamation *per se*; (2) defamation *per quod*; (3) conversion; (4) conspiracy; (5) intentional misrepresentation; (6) negligent misrepresentation; (7) intentional infliction of emotional distress; (8) intentional interference with prospective economic advantage; (9) trespass to chattels; (10) declaratory relief; and (11) injunctive relief.

The first, second, and fifth through eighth causes of action rest on allegations that Defendants published unprivileged, false statements to third-party family and community members accusing Plaintiff of forgery, theft, and embezzlement. The third, ninth, and tenth causes of action seek relief arising from extrajudicial efforts to retitle the Kapisa real property through the Taliban regime. The fourth and eleventh causes of action seek derivative conspiracy liability and injunctive remedies based on that underlying conduct.

On April 26, 2026, Defendants filed this anti-SLAPP motion arguing that the entire complaint arises from protected activity because the claims are based on the 2016 probate proceeding and Wakily's underlying will contest. Defendants argue that Plaintiff's own complaint concedes this action merely revives the assertions and grievances from the probate proceeding, bringing the challenged statements within the scope of section 425.16, subdivision (e). Under the second prong, Defendants argue that Plaintiff cannot establish a probability of prevailing on any claim because all alleged communications are barred by the litigation privilege in Civil Code section 47, subdivision (b). Defendants further argue that Plaintiff cannot establish minimal merit on the individual causes of action, asserting that conversion and trespass to chattels do not apply to real property, the fraud and

misrepresentation claims lack reliance, the conduct alleged is insufficient to support intentional infliction of emotional distress, Plaintiff does not adequately plead prospective economic advantage, and declaratory relief is unavailable on these facts. Accordingly, Defendants seek an order striking the complaint and an award of attorney fees and costs pursuant to section 425.16, subdivision (c)(1) to be determined on subsequent motion.

On August 27, 2026, Plaintiff filed an opposition arguing that Defendants fail to satisfy their burden under the first prong of the anti-SLAPP statute because the challenged claims arise from unprivileged statements made within the Afghan-American community in 2025 and 2026 and non-communicative conduct in Afghanistan, not statements in connection with any judicial proceeding. Plaintiff further contends that prior probate filings are referenced as background context and evidence of actual malice. Under the second prong, Plaintiff argues that his evidentiary submissions show a probability of prevailing on each cause of action. Claiming the motion is frivolous, Plaintiff requests an award of attorney fees against Defendants in the amount of \$15,685 under Code of Civil Procedure section 425.16, subdivision (c)(1).

Requests for Judicial Notice and Evidentiary Objections

Plaintiff requests judicial notice of federal and county housing program guidelines (Exhibits A and B, offered to show the decedent's limited financial means in support of Plaintiff's second-prong showing of falsity, and court records from the 2016 probate proceeding, Estate of Mohammed Aslam Khamosh, Contra Costa County Superior Court Case No. P16-00362. (Exhibits C, D, and E.) The Court takes judicial notice of the existence of the court records in Case No. MSP16-00362, but not the truth of any hearsay statements contained within them. Because Defendants fail to carry their burden on the first prong, the Court does not reach the merits under the second prong and denies the request as to Exhibits A and B as unnecessary.

Defendants object to the declarations of Sana Gull Azimi, Mohamada Gul, Naqibullah Rahimi, and Safia Bunyad offered to show a probability of prevailing on the merits under the second step of the anti-SLAPP analysis. Because the Court does not reach the second step of the anti-SLAPP analysis, the Court declines to rule on Defendants' evidentiary objections as unnecessary to this ruling.

Legal Standard

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc. § 425.16 subd. (b)(1).) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (*Baral*)).

Anti-SLAPP motions are resolved through a two-step analysis. (*Baral, supra*, 1 Cal.5th at p. 384.) At the first step, the defendant must establish the challenged allegations or claims arise out of activity protected under section 425.16. (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1061 (*Park*); *Baral, supra*, 1 Cal.5th at p. 384.) "At the first step, the moving defendant

bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (*Baral, supra*, 1 Cal. 5th at p. 396.) After identifying the allegations of protected activity, the defendant must demonstrate the activity alleged falls within one of the four categories described in section 425.16 subdivision (e). (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 620.) In addition to the pleadings, the court may consider declarations and other evidence presented in order to determine what conduct is being challenged, but not to assess the merit of the claims. (*Coretronic Corp. v. Cozen O'Connor* (2011) 192 Cal.App.4th 1381, 1389–1390.)

If the defendant meets this burden, then, at the second step, the burden shifts to the plaintiff to demonstrate the claims have at least “minimal merit” (*Park, supra*, 2 Cal.5th at p. 1061) by making “a prima facie factual showing sufficient to sustain a favorable judgment” (*Baral, supra*, 1 Cal.5th at p. 385; see *id.* at p. 396).

Step 1: Protected Activity

To determine whether a claim arises out of protected activity, the Court considers the elements of each claim and what actions of the defendant supply those elements to form the basis of liability. (See *Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1020.) The Court looks to the “core injury-producing conduct” and differentiates between that which is merely evidence in support of a claim versus the basis of liability for a claim. (*Id.* at p. 1020.)

According to Defendants, the entire complaint arises from protected activity because it targets conduct and statements connected to the 2016 probate case. To that end, Defendants point to allegations in the Complaint that Defendant Wakily filed an objection and will contest in 2016, that Defendants Omar and Khair filed declarations in that proceeding, that the probate case forms the factual background of the family's dispute, and that Plaintiff alleges Defendants have “revived” a defamatory campaign.

Under the anti-SLAPP statute, “a claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park, supra*, 2 Cal.5th at p. 1060; see *Greco v. Greco* (2016) 2 Cal.App.5th 810, 819–820 (*Greco*).) Here, Plaintiff contends that the allegations referring to the 2016 probate proceeding merely provide context for his current claims and establish evidentiary facts, and that none of his claims are premised on protected petitioning activity. Rather, Plaintiff contends that he seeks to impose liability on Defendants based on an extrajudicial defamatory campaign conducted within the Afghan-American community in 2025 and 2026, and physical self-help conduct in Afghanistan. Specifically, Plaintiff alleges that at a May 2025 family gathering in Afghanistan and at a January 17, 2026 memorial prayer gathering in Hayward attended by approximately 200 people, Defendants publicly made false statements accusing Plaintiff of forging his father's will, stealing \$50 million from a nonexistent Turkish bank account to fund his gas station businesses, and pocketing millions of dollars in lease payments from family land. (Compl. ¶¶ 37-46, 58-59.) Plaintiff also alleges that Defendants engaged in extrajudicial acts by traveling to Afghanistan to work through the Taliban regime to remove Plaintiff's name from ancestral land records and register themselves as heirs. (Compl. ¶¶ 5, 44, 49-50, 77-87.) According to Plaintiff, the specific allegations highlighted by Defendants regarding the 2016 probate case are background and evidence demonstrating Defendants' actual malice, because Defendants Omar and Khair previously submitted sworn declarations under penalty of perjury in 2016 confirming the validity of the will and stating that accusations against

Plaintiff were "vicious lies." (Compl. ¶¶ 2, 30-31, 62, 71, 100, 120.)

Defendants' specific arguments that this action arises from the 2016 probate case do not persuade the court that their motion has merit.

First, Defendants argue that Plaintiff's property tort claims arise from protected petitioning activity because Plaintiff alleges he became the owner of the Afghanistan property following the dismissal of the 2016 will contest. Tracing title to a judicial order or decree does not convert an action against a third party for conversion or interference with that property into a SLAPP. (See *City of Cotati, supra*, 29 Cal.4th at p. 78; *Greco, supra*, 2 Cal.App.5th at pp. 824–825.) The injury-producing conduct alleged here is Defendants' travel to Afghanistan to retitle land through an extrajudicial foreign regime.

Second, Defendants cite to allegations that Defendants "revived" a "years-long campaign" (Compl. ¶¶ 1, 4) and Plaintiff's own probate pleadings (characterizing Wakily's contest as dishonorable) to argue that Plaintiff conceded this action targets the 2016 litigation. (Defs.' RJN Exh. 3.) But Plaintiff's phrasing does not alter the legal basis of liability. Here, Plaintiff is not suing for malicious prosecution based on the 2016 will contest, nor is he seeking damages for statements made in connection with that proceeding. Rather, he sues over statements published to private community gatherings in 2025 and 2026.

Third, the specific allegations cited by Defendants from the Complaint do not establish protected activity. Paragraphs 8 through 10 and 13 through 16 simply recite jurisdictional contacts and background history. Whether or not prior probate litigation is sufficient to establish personal jurisdiction or venue, those allegations are not pled to provide a basis for substantive liability. As established, "a claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Park, supra*, 2 Cal.5th at p. 1060.) Here, the conduct highlighted by Defendants is either evidence of liability or a step leading to some different act.

Finally, even if portions of the complaint were viewed as touching upon protected activity, Defendants' motion fails procedurally. In their motion, Defendants move for an order striking Plaintiff's complaint in its entirety pursuant to Code of Civil Procedure section 425.16. (Notice of Motion, p. 1.) Defendants do not identify any specific allegations or individual cause of action that should be stricken in their motion. Likewise, in their brief, Defendants argue that the entire action arises from petitioning activity connected to the 2016 probate proceeding.

"[T]o the extent [Plaintiff] has alleged various acts as a basis for relief and not merely as background, each act or set of acts must be analyzed separately under the usual two-step anti-SLAPP framework." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1012.) Defendants "bear the burden of showing that each allegation supporting [Plaintiff's] claim of recovery is one that rests on protected activity." (*Id.* at p. 1012.)

In *Park v. Nazari* (2023) 93 Cal.App.5th 1099 (Nazari), the defendants similarly noticed their motion "for an order striking each of [plaintiff's c]omplaint [sic]." (*Id.* at p. 1105.) The Nazari defendants argued all of the claims arose from protected activity, but the trial court rejected this undifferentiated approach because the notice of motion targeted only the entire complaint, and the appellate court affirmed. (*Id.* at pp. 1105–1106.) "Because the Nazaris moved to strike only the entire complaint, and

did not identify in their motion individual claims or allegations that should be stricken even if the entire complaint were not, the trial court was permitted to deny the anti-SLAPP motion once it concluded—correctly—that the complaint presented at least one claim that did not arise from anti-SLAPP protected conduct." (*Id.* at p. 1106.) Because Defendants have "taken the position that the entire complaint arises from protected activity and requests that the entire complaint be stricken", it follows that Defendants do not carry their "first-step burden so long as the complaint presents at least one claim that does not arise from protected activity." (*Id.* at pp. 1106, 1108.)

Here, the property-based claims (including the third cause of action for conversion, the ninth cause of action for trespass to chattels, and the tenth cause of action for declaratory relief) do not arise from protected activity. The alleged taking and physical retitling of the Afghanistan property, whether or not actually wrongful, does not fall within any category of protected activity described in Code of Civil Procedure section 425.16, subdivision (e). The trip to Afghanistan and efforts to alter land records does not constitute a "written or oral statement or writing" under subdivisions (e)(1), (e)(2), or (e)(3). Only "one of the four categories of protected activity covers conduct (§ 425.16, subd. (e)(4) ['conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech']) and that type of protected activity must have taken place 'in connection with a public issue or an issue of public interest.'" (*PrediWave Corp. v. Simpson Thacher & Bartlett LLP* (2009) 179 Cal.App.4th 1204, 1226; see *Greco, supra*, 2 Cal.App.5th at p. 823.) Even if Defendants' efforts to claim heirship in Afghanistan could be considered conduct in furtherance of petitioning, it was not "in connection with a public issue or an issue of public interest." "The most commonly articulated definitions of 'statements made in connection with a public issue' focus on whether (1) the subject of the statement or activity precipitating the claim was a person or entity in the public eye; (2) the statement or activity precipitating the claim involved conduct that could affect large numbers of people beyond the direct participants; and (3) whether the statement or activity precipitating the claim involved a topic of widespread public interest. [Citations.]" (*Wilbanks v. Volk* (2004) 121 Cal.App.4th 883, 898.) None of these factors is present here. The parties are not in the public eye, their private family grievances appear to affect no one beyond the immediate family, and their accusations of wrongdoing over property do not touch on any matter of widespread public interest.

A cause of action may contain allegations of both protected and unprotected activity, loosely referred to as a "mixed cause of action," but an anti-SLAPP motion can reach a claim based on protected activity regardless of how the pleading is organized. (*Baral, supra*, 1 Cal.5th at pp. 382, 392.) However, "[w]here there are 'mixed' causes of action involving both protected and nonprotected activity, it is the moving party's burden to identify in the motion the allegations of protected activity and the claims arising from it. A motion directed only to an entire complaint may be denied if some claims involve nonprotected activity." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial [TRG 2024] ¶ 7:772, citing *Baral, supra*, 1 Cal.5th at p. 391.)

Because the complaint contains causes of action that do not arise from protected activity, and because Defendants brought a blanket motion directed to the complaint in its entirety without identifying specific claims or allegations to be excised, the motion must be denied. Even assuming that other causes of action arise from protected activity (which the Court does not find), Defendants have failed to satisfy their threshold burden under the first prong. (*Nazari, supra*, 93 Cal.App.5th at pp. 1106, 1108.)

Step 2: A Probability of Prevailing

Because Defendants have failed to establish that Plaintiff's claims arise from protected activity under section 425.16, subdivision (e), the Court need not reach the second prong of the anti-SLAPP analysis. (*Baral, supra*, 1 Cal.5th at p. 384 [holding that only if the defendant makes the threshold showing does the burden shift to the plaintiff to demonstrate a probability of prevailing on the merits].) Consequently, the Court does not reach Defendants' remaining arguments, including their assertion of the litigation privilege, or their various challenges to the sufficiency of the individual causes of action.

Attorney Fees

The Court denies Defendants' request for attorney fees because they did not prevail, and Plaintiff's request for fees is likewise denied.

Plaintiff requests an award of attorney fees and costs in the amount of \$15,685 under Code of Civil Procedure section 425.16, subdivision (c)(1). Under that provision, if the court finds that a special motion to strike is frivolous or solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney fees to a prevailing plaintiff pursuant to section 128.5. (*Moore v. Shaw* (2004) 116 Cal.App.4th 182, 198–199.) A determination of frivolousness requires a finding that the motion is "totally and completely without merit" (Code Civ. Proc., § 128.5, subd. (b)(2)), meaning that "any reasonable attorney would agree such motion is totally devoid of merit." (*Moore, supra*, at p. 199; see also *Clarity Co. Consulting, LLC v. Gabriel* (2022) 77 Cal.App.5th 454, 465.)

Here, the Court does not find that Defendants' motion was frivolous or brought in bad faith. Plaintiff's complaint discusses the 2016 probate proceedings extensively and frames the current controversy in light of that history. While the Court concludes that the claims ultimately do not fall within the scope of section 425.16, subdivision (e), the legal arguments advanced were understandable and within the range of issues reasonable counsel might raise. Nothing suggests the motion was brought solely to cause delay or harassment.

Even if the Court found the motion frivolous, it would deny fees because Plaintiff did not offer sufficient evidence to support his requested award of \$15,685. Under the lodestar method applicable to attorney fee awards under section 425.16, the court begins by determining the reasonable hours spent and multiplying that figure by a reasonable hourly rate. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135–1136.) The prevailing party bears the burden to present time records showing the hours spent on the motion. (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 396.) Counsel sets forth hourly rates of \$650 for himself and \$550 for an associate and requests a total sum of \$15,685. (Horst Decl., ¶¶ 8, 10.) However, the record contains no billing records or breakdown of the time spent on the motion. Without this information, the Court cannot verify that the fees were reasonably and necessarily incurred in connection with the motion. (See, e.g., *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.)

Disposition

Based on the foregoing, the motion is **denied**.

15. 9:00 AM CASE NUMBER: C26-00886
CASE NAME: TIJUANA JACKSON VS. MERCEDES-BENZ USA LLC, A LIMITED LIABILITY COMPANY
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: MERCEDES-BENZ USA LLC, A LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Before the Court is a motion by defendant Mercedes-Benz USA, LLC to compel arbitration and stay the action. For the reasons set forth, the motion is **granted**, and the action shall be **stayed** pending completion of the arbitration, except for periodic case management conferences as set by the Court to monitor the status of the arbitration.

Background

Plaintiff alleges that in August 2024, Plaintiff "acquired" a 2023 Mercedes-Benz EQB 80 vehicle. (Compl. ¶ 7.) She alleges that the vehicle was defective and could not be satisfactorily repaired. She alleges two causes of action against defendant Mercedes-Benz USA, LLC under the Song-Beverly Consumer Warranty Act, Civil Code section 1790, *et seq.* ("Song-Beverly Act") and a third cause of action for violation of the Unfair Competition Law, Business & Professions Code section 17200 *et seq.* ("UCL").

Mercedes-Benz moves to compel arbitration of Plaintiff's claims. The motion is supported by the declaration of Sybil Leung which attaches a copy of the California Motor Vehicle Lease Agreement dated August 4, 2024 entered into by Plaintiff as lessee with Mercedes-Benz of Walnut Creek as lessor (the "Lease"). (Leung Decl. Exh. 1.) The Lease includes a section titled "Important: Arbitration Disclosures" ("Arbitration Agreement") which sets forth the Arbitration Agreement Mercedes-Benz seeks to enforce. (Leung Decl. Exh. 1 pp. 4-5.) Plaintiff opposes the motion.

Procedure and Burden of Proof on Motion to Compel Arbitration

The Arbitration Agreement states that it "is governed by the Federal Arbitration Act, 9 U.S.C. § 1, *et seq.*" (the "FAA"). Defendant has also presented evidence that its business as an automotive dealership with repair facilities is involved in interstate commerce, such that the FAA governs on that ground as well. (Brandt Decl. ¶ 4; *Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 55-57 [the term "involving commerce" in the FAA is "the functional equivalent of the more familiar term 'affecting commerce'--words of art that ordinarily signal the broadest permissible exercise of Congress' Commerce Clause power. [Citation omitted.], holding the FAA applied to debt restructuring agreements even though the individual transactions in that case may not have actually been in interstate commerce]; *Allied-Bruce Terminix Cos., Inc. v. Dobson* (1995) 513 U.S. 265, 273-274 [broadly construing "involving interstate commerce" to mean "affecting" interstate commerce, and holding the FAA governed an arbitration agreement between a homeowner and local pest control company where the treatment products and repair materials were shipped from out of state].)

Whether the Arbitration Agreement is governed by the FAA or the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as unconscionability, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996)

14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.)

The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.

[Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

Existence of An Agreement to Arbitrate

There is no dispute regarding the existence of the Arbitration Agreement. Plaintiff does not contest that she signed the Lease which contains the Arbitration Agreement.

Right to Enforce Arbitration Agreement by Mercedes-Benz as Third Party Beneficiary

Ordinarily, only a party to an arbitration agreement can enforce it. (*Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal. App. 4th 830, 837.) There are several exceptions to that general rule, however, including the agency exception and the third party beneficiary exception. (*Id.* at 837-838.) Mercedes-Benz relies on the third party beneficiary exception.

The Arbitration Agreement in the Lease in this case states: "Any claim or dispute, whether in contract, tort or otherwise {including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a 'Third Party Beneficiary'), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of **either you, us, or a Third Party Beneficiary**, be resolved by a neutral, binding arbitration and not by a court action." (Leung Decl. Exh. 1, p. 4 of 10 [emphasis added].) The provision is unlike the arbitration provisions in the RISCs involved in the *Ford Motor Warranty Cases* and other decisions relied on by Plaintiff.

A. Third Party Beneficiary Elements

Civil Code section 1559 provides: "A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." The California Supreme Court explained the requirements for invoking the third party beneficiary doctrine in *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817: "[U]nder California's third party beneficiary doctrine, a third party—that is, an individual or entity that is not a party to a contract—may bring a breach of contract action against a party to a contract only if the third party establishes not only (1) that it is likely to benefit from the contract, but also (2) that a motivating purpose of the contracting parties is to provide a benefit to the third party, and further (3) that permitting the third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties." (*Id.* at 821; *Id.* at 829.) All three elements are required for the third party to be able to enforce the contract. (*Id.* at 829.)

In explaining the third element, the Court stated: "[T]he third element does not focus upon whether

the parties specifically intended third party enforcement but rather upon whether, taking into account the language of the contract and all of the relevant circumstances under which the contract was entered into, permitting the third party to bring the proposed breach of contract action would be 'consistent with the objectives of the contract and the reasonable expectations of the contracting parties.' [Citation omitted.] In other words, this element calls for a judgment regarding the potential effect that permitting third party enforcement would have on the parties' contracting goals, rather than a determination whether the parties actually anticipated third party enforcement at the time the contract was entered into." (*Id.* at 830-831.)

B. Ford Motor Warranty Cases and Other Authorities Cited by Plaintiff

Plaintiff contends Mercedes-Benz cannot enforce the Arbitration Agreement and relies on the Second District Court of Appeal decision cited by Plaintiff as *Ochoa v. Ford Motor Company* (2023) Case No. B312261. (Opp. p. 3, l. 6; see *Ford Motor Warranty Cases (Ochoa v. Ford Motor Company)* (2023) 89 Cal.App.5th 1324.) The California Supreme Court granted review in that case and subsequently rendered a decision resolving a split among the District Courts of Appeal in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, reversing the decision in *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486 that held a motor vehicle manufacturer could compel a plaintiff to arbitrate claims arising out of a Retail Installment Sale Contract ("RISC") under an equitable estoppel theory, which the California Supreme Court rejected. (*Ford Motor Warranty Cases, supra*, 17 Cal.5th at 1126, 1129, 133-1138.)

In the Court of Appeal decision in *Ford Motor Warranty Cases, supra*, 89 Cal.App.5th 1324, affirmed by the California Supreme Court, the Court addressed and rejected that the manufacturer in that case could enforce the arbitration provision of the RISC as a third party beneficiary. While recognizing that a nonsignatory to a contract can enforce a contract as a third party beneficiary, the Court held the three requirements for the third party beneficiary exception to apply had not been met in that case, in part based on the fact that the RISC did not designate the manufacturer as a third party beneficiary of the contract. (*Id.* at 1338-1340.) Plaintiff's opposition quotes that portion of the Court of Appeal decision addressing the third party beneficiary exception, stating "If the signatories had intended to benefit [Ford Motor Company, the manufacturer], such a purpose would have been easy to articulate. They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration. But they did not." (*Id.* at 1339 [emphasis added].) (See Opp. p. 3, ll. 12-14.) The Court in *Ford Motor Warranty Cases* did not state that the manufacturer's warranties had to be incorporated into the RISC or that the manufacturer had to sign the RISC in order for the manufacturer to compel arbitration under the RISC as a third party beneficiary, only that the RISC had to name the manufacturer as a person entitled to compel arbitration. (*Compare to* Opp. p. 6, ll. 7-10.)

This statement, quoted by Plaintiff in her brief, highlights why the Arbitration Agreement in this case is distinguishable from the RISC in *Ford Motor Warranty Cases*. The Lease in this case does exactly what the Court in *Ford Motor Warranty Cases* indicated the parties could have done to "articulate" that the manufacturer or distributor is a person entitled to compel arbitration by naming Mercedes-Benz explicitly in the Arbitration Agreement and designating it a Third Party Beneficiary at whose election arbitration can be compelled. The other three cases cited by Plaintiff are distinguishable for the same reason; each involved an RISC which did not explicitly name the manufacturer or distributor in the arbitration provision as a Third Party Beneficiary who could compel arbitration. (*Yeh v. Superior Court* (2023) 95 Cal.App.5th 264, 270–272; *Kielar v. Superior Court* (2023) 94 Cal.App.5th

614, 619; *Montemayor v. Ford Motor Co.* (2023) 92 Cal.App.5th 958, 969.)

Plaintiff addresses the language of the Arbitration Agreement, which explicitly designates Mercedes-Benz as a third party beneficiary of the Arbitration Agreement, only obliquely without engaging with the actual language of the provision quoted above. Plaintiff argues the language designating Mercedes-Benz as an express Third Party Beneficiary of the Arbitration Agreement is in the "fine print" (Opp. p. 5, l. 21), but the provision is in the same print size and font as the rest of the Lease except under a larger heading with larger font titled "Important: Arbitration Disclosures." It specifically designates Mercedes-Benz as a Third Party Beneficiary by class as the vehicle distributor and by name. (*Ford Motor Warranty Cases, supra*, 89 Cal.App.5th at 1339.)

C. Plaintiff's Argument Regarding No Consideration

Plaintiff also argues that there is no "consideration" by Mercedes-Benz for the Arbitration Agreement. She argues that Mercedes-Benz is not bound to accept arbitration because the provision is not mutual. (Opp. p. 6, l. 22 – p. 7, l. 6.) Plaintiff argues that if promises are exchanged as the consideration, then the promises must be mutual. (Opp. p. 6, ll. 1-6.)

The Arbitration Agreement is mutual. As reflected in the terms highlighted above, Plaintiff also has the right to compel Mercedes-Benz to arbitrate. (Leung Decl. Exh. 1 p. 4.) Mercedes-Benz and Plaintiff have exchanged mutual promises to arbitrate claims under the Lease and the Arbitration Agreement.

D. Application of Third Party Beneficiary Doctrine to Mercedes-Benz

The three requirements of the third party beneficiary doctrine are met. The fact the Arbitration Agreement expressly names Mercedes-Benz and grants it standing to compel arbitration (and to be compelled to arbitration by Plaintiff) demonstrates that Mercedes-Benz is likely to benefit, and was intended to benefit, from this provision of the Lease and that a motivating purpose of the Arbitration Agreement was in part to benefit Mercedes-Benz. (*Goonewardene, supra*, 6 Cal.5th at 829, 830.) Further, in the Court's judgment, allowing Mercedes-Benz to enforce the Arbitration Agreement is consistent with the parties' contracting goals in entering into the Arbitration Agreement as part of the Lease and the reasonable expectation of the parties as expressed in the terms of the Arbitration Agreement, as the Court in *Goonewardene* explained the third requirement for enforcement of a contract by a third party beneficiary. (*Id.* at 830-831.) The Arbitration Agreement explicitly contemplates that the parties would resolve by arbitration "any dispute or claim" arising out of or related to the Lease "or any resulting transaction or relationship arising out of the Lease" including with nonsignatory third parties. (Leung Decl. Exh. 1, p. 4.) The provision explicitly identifies the vehicle distributor, including Mercedes-Benz, as a party against whom arbitration could be enforced by Plaintiff as lessee or who could enforce the right to arbitrate. (Leung Decl. Exh. 1 p. 4.)

The Court's determination in this regard is reinforced and supported by the recently published decision, *Srivastava v. BMW of North America, LLC* (6th DCA August 4, 2026) 2026 Cal.App. LEXIS 520 *1, ordered published August 26, 2026. The Court in that case reversed a trial court order denying a motion to compel arbitration, concluding that a vehicle lease agreement which included an arbitration provision that identified the manufacturer BMW and designated BMW a third party beneficiary met the requirements for BMW to enforce the arbitration provision as a third party beneficiary of the contract, but remanding the case to the trial court to address the plaintiff's

unconscionability defense. (*Id.* at *8.)

Unconscionability Defense to Enforcement of Arbitration Agreement

Plaintiff contends the Arbitration Agreement is unenforceable because it is unconscionable. The burden of proof of unconscionability is on Plaintiff as the party resisting arbitration. (*Rosenthal, supra*, 14 Cal.4th at 413; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Plaintiff must prove both procedural and substantive unconscionability to render the Arbitration Agreement unenforceable, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910; *OTO, supra*, 8 Cal.5th at 125.)

1. Procedural Unconscionability

Plaintiff argues the agreement is procedurally unconscionable. Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra*, 8 Cal.5th at 126.) Where the agreement is a contract of adhesion, typically a non-negotiable form contract drafted by the party seeking to compel arbitration, there is some showing of oppression and a degree of procedural unconscionability. (*OTO, supra*, 8 Cal.5th at 126; *Pinnacle, supra*, 55 Cal.4th at 247.) Surprise for purposes of procedural unconscionability occurs " 'where the allegedly unconscionable provision is hidden within a prolix printed form.' [Citation omitted.]" (*Pinnacle, supra*, 55 Cal.4th at 247.)

Plaintiff contends there is procedural unconscionability because the Arbitration Agreement is a contract of adhesion. The Arbitration Agreement appears to be a standard form contract which would qualify as a contract of adhesion, but that fact alone gives rise only to low degree of procedural unconscionability. (*Sanchez, supra*, 61 Cal.4th at 915; *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493. 494 [contracts of adhesion "remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid," and "although adhesion alone generally indicates only a low degree of procedural unconscionability, the potential for overreaching in the employment context warrants close scrutiny of the contract's terms." (Emphasis added.)].)

Plaintiff has not submitted any evidence in opposition to the motion, including evidence regarding the circumstances surrounding her execution of the Arbitration Agreement. Plaintiff makes factual arguments regarding "high-pressure sales and lease environments such as auto dealerships," and Plaintiff having no choice but to accept the terms of the Lease as-is because all bargaining relates only to the price. (Opp. p. 8, ll. 16-20.) There is no evidence before the Court to support these factual arguments. Further, even accepting the argument that Plaintiff may not have been able to negotiate anything but the price under the Lease, this circumstance is not like that of a typical existing or prospective employee seeking employment with no bargaining power to reject or negotiate because of the pressure to obtain a job. Plaintiff has not presented evidence that she was under pressure to lease the Mercedes-Benz vehicle as opposed to other available vehicles.

Plaintiff also argues that there is procedural unconscionability because a copy of the American Arbitration Association arbitration rules were not provided to her. Again, this argument is not supported by any evidence that she did not receive a copy of the AAA rules. Even if the Court were to assume that fact, despite the lack of evidence, the failure to provide copies of the rules does not

increase the degree of procedural unconscionability based on oppression or surprise unless there is a substantively unconscionable provision in the AAA rules. (See *Baltazar v. Forever 21, Inc.* (2016) 62 Cal. 4th 1237, 1246.) "[T]he failure to provide a copy of the arbitration rules generally raises procedural unconscionability concerns only if there is a substantively unconscionable provision in the omitted rules." (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 590 [relying on *Baltazar, supra*, 62 Cal.4th at 1246.]) (See also *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 249 ["*Baltazar* removed the nonprovision or nonattachment of the AAA rules as a basis for increasing the procedural unconscionability level, leaving only the failure to explain the meaning of arbitration. But 'simply because a provision within a contract of adhesion is not read or understood by the nondrafting party does not justify a refusal to enforce it. The unbargained-for term may only be denied enforcement if it is also substantively unreasonable.' [Citation omitted.]"].)

Plaintiff also argues there is "surprise" because the Arbitration Agreement is hidden in the Lease. Plaintiff makes this argument under the heading of "substantive unconscionability," but surprise is a component of procedural unconscionability. (Opp. p. 8, l. 24 – p. 9, l. 11; *Pinnacle, supra*, 55 Cal.4th at 247.) The Court does not find that the Arbitration Agreement was hidden in the Lease form. It is set out in a separate section with a clear heading highlighting the section is "Important." (Lease p. 4.)

On this record, the Court finds only a low degree of procedural unconscionability.

2. Substantive Unconscionability

"Substantive unconscionability looks beyond the circumstances of contract formation and considers 'the fairness of an agreement's actual terms' [citation omitted], focusing on whether the contract will create unfair or one-sided results [citation omitted.]. Substantively unconscionable contractual clauses 'reallocate risks in an objectively unreasonable or unexpected manner.' [Citations omitted.]" (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493.) In making the unconscionability determination, "[t]he ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Sanchez, supra*, 61 Cal.4th at 911-12.) In general, in order to be found substantively unconscionable, the arbitration agreement provisions must be so overly harsh, unduly oppressive, and unreasonably favorable to the more powerful party that they undermine the neutrality of the agreement to arbitrate. (*Sanchez, supra*, 61 Cal.4th at 910-911, 913.) Something more than a party making a bad bargain is required. (*Pinnacle, supra*, 55 Cal.4th at 246 ["A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be 'so one-sided as to 'shock the conscience.' "].)

Despite the heading in Plaintiff's opposition asserting that the Arbitration Agreement is substantively unconscionable, the only ground Plaintiff raises for "substantive" unconscionability is that the Arbitration Agreement was allegedly hidden in the Lease, an argument the Court has rejected. (Opp. p. 8, l. 24 – p. 9, l. 11.) The argument is one of procedural unconscionability in any event.

Plaintiff has also argued in other portions of the opposition that the Arbitration Agreement was one-sided because Plaintiff could not enforce arbitration against Mercedes-Benz. The Court has rejected the argument, as the terms of the Arbitration Agreement quoted and emphasized above allow "you," meaning the lessee, to elect to arbitrate any claim or dispute arising under or related to the Lease and resulting transactions and relationships. (Leung Decl. Exh. 1 p. 4.)

Plaintiff contends, without supporting evidence, that she was not provided with a copy of the AAA Arbitration Rules which supports a finding of unconscionability, relying on the case *Harper v. Ultimo* (2003) 113 Cal.App.4th 1402. The Court in *Baltazar* explained decisions such as *Harper v. Ultimo*, stating with regard to the failure to provide the arbitration rules in that case that "the plaintiff's procedural unconscionability claim depended in some manner on the arbitration rules in question. [Citations omitted.] These cases thus stand for the proposition that courts will more closely scrutinize the substantive unconscionability of terms that were 'artfully hidden' by the simple expedient of incorporating them by reference rather than including them in or attaching them to the arbitration agreement. [Citation omitted.]" (*Baltazar, supra*, 62 Cal.4th at 1246 [emphasis added].)

Plaintiff has not cited any provision of the Arbitration Agreement itself or the AAA Arbitration Rules that is overly harsh, one-sided, contrary to public policy, or otherwise unfair. In contrast, in *Harper v. Ultimo, supra*, the Better Business Bureau arbitration rules not provided to the customer included provisions severely and unexpectedly restricting the remedies available to the complaining party. (*Harper v. Ultimo, supra*, 113 Cal.App.4th at 1405-1406 [construction contract damage cap of \$2,500 on top of limitation of remedies against contractor under construction project to refund, completion of work, repair costs, or out-of-pocket property damage substantively unconscionable].)

Plaintiff has not shown any substantive unconscionability, which is essential to the unconscionability defense, as both procedural and substantive unconscionability must be proven to render the Arbitration Agreement unenforceable. The motion is therefore **granted**.

16. 9:00 AM CASE NUMBER: MSC21-01948
CASE NAME: KATZ VS. ESKATON PROPERTIES
HEARING ON SUMMARY MOTION
FILED BY: ESKATON PROPERTIES, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is Defendants Eskaton Properties, Inc. and The Reutlinger Community's Motion (collectively "Defendants") for Summary Judgment or, in the alternative, Summary Adjudication ("MSA").

Procedural History and Factual Background

Plaintiffs Alexander Katz and Julia Mirman are the adult children of Marat Katz and the successors in interest and heirs of Marat Katz. Given the same last name of Alexander and Marat Katz, the Court will refer to each by their first name to avoid confusion. The Court means no disrespect in using this procedure. The Court notes Defendants' expert, Morgan Katz, M.D., also has the surname Katz, so the use of first names will hopefully decrease any confusion.

Marat was admitted to The Traditions memory care unit of The Reutlinger on March 27, 2020. (UMF 1). His admission diagnosis included mild cognitive impairment, unspecified dementia with behavioral disturbance, and unspecified focal traumatic brain injury. (UMF 4.) On August 19, 2020, during this stay at The Reutlinger, he was briefly hospitalized at San Ramon Regional Medical Center. (UMF 5.) He then returned to Traditions. (*Ibid.*)

On August 22, after Marat returned from San Ramon, The Reutlinger tested him for COVID-19. (UMF 21.) The test came back negative on August 26, 2020. (*Ibid.*) Later that same day, Marat was found unresponsive in his room and emergently transferred back to the hospital. (UMF 22.) After being re-admitted to the hospital, he did not receive COVID-directed therapy until August 31. (UMF 23.)

The Reutlinger collected multiple COVID tests from Marat around this time. (UMF 25.) He tested negative in July and on August 22. (UMF 25 – Allen Decl. ¶15 c.) A test collected on August 23 returned positive. (*Ibid.*) Subsequent testing at John Muir returned negative results. (*Ibid.*)

Marat was discharged from Traditions on August 22, 2020. (UMF 6.) He died on September 15, 2020, at John Muir Medical Center. (UMF 7.) His death certificate indicates that the immediate cause of death was “hypoxic respiratory failure.” (UMF 8.) The underlying cause is identified as COVID-19. (*Ibid.*)

The original complaint was filed on September 16, 2021. The operative First Amended Complaint was filed on May 11, 2022. It alleges three causes of action: (1) reckless or wilful neglect of an Elderly Adult; (2) wrongful death; and (3) negligence.

Initial Considerations

“If evidence in support of or in opposition to a motion exceeds 25 pages, the evidence must be separately bound and **must include a table of contents.**” (Cal. R. Ct. 3.1350(g) emphasis added.) Plaintiffs filed a 20-part collection of exhibits in support of their opposition with 68 exhibits and over 8,000 pages. No table of contents was provided, making the Court’s job exponentially more difficult in locating the proper exhibit when cited.

When a deposition is used as an exhibit, “the exhibit must contain only the relevant pages of the transcript.” (Cal. R. Ct. 3.1116 (b).) In addition, the “relevant portion of any testimony in the deposition **must be marked** in a manner that calls attention to the testimony.” (Cal. R. Ct. 3.1116 (c) emphasis added.) Normally, this is done by either highlighting or bracketing the lines being cited in the Memorandum and/or Separate Statement.

Among the 68 exhibits are the deposition transcripts of ten separate individuals. The full transcript of each deposition – including the word indexes – are attached. None of the transcripts includes markings of any relevant portions. A review of Plaintiffs’ Opposition and Response to the Separate Statement shows that Plaintiffs only cite three of these depositions: Anna Catalan, Arlisha Tillman, and Nanci Bustamante. The inclusion of these voluminous exhibits, a minority of which are actually cited, without citations or highlights to relevant portions is unnecessary and only creates an additional burden on the Court.

Additionally, all documents filed electronically “must be text searchable when technologically feasible...” (Cal. R. Ct. 2.256 (b)(3).) Only some of the deposition transcripts were electronically searchable, making the Court’s work incredibly more time consuming.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. §

437c(c).) The “moving papers must demonstrate that ‘material facts’ are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) “The moving party’s papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party.” (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party “bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; *if* he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment “must make a prima facie showing, i.e., ‘he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.” (*Ibid.* quoting *Aguilar*, *supra*, 174 Cal.App.4th at 851.)

Analysis

Negligence

While the third cause of action is generally labeled one for ‘negligence,’ Defendants contend it is a claim for ‘professional negligence.’

“Professional negligence” applies to “a negligent act or omission to act by a health care provider *in the rendering of professional services*, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital.” (*So v. Shin* (2013) 212 Cal.App.4th 652, 663.) “Courts have broadly interpreted ‘in the rendering of professional services,’ concluding that a negligent act that occurs in the rendering of services for which the health care provider is licensed is professional negligence.” (*Ibid.*)

Plaintiffs do not dispute this categorization in their Opposition. The claims in this case properly fit within the above definition and will be addressed as a professional negligence claim.

“The elements of a cause of action for professional negligence are failure to use the skill and care that a reasonably careful professional operating in the field would have used in similar circumstances, which failure proximately causes damage to plaintiff.” (*Cyr v. McGovran* (2012) 206 Cal.App.4th 645, 651.) The elements of duty, breach, and causation in professional negligence cases required expert opinion testimony. (See e.g. *Scott v. Rayhrer* (2010) 185 Cal.App.4th 1535, 1542; *Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 509.)

The general rule is that causation is a question of fact not resolvable on summary judgment; “[t]he issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion.” (*Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1687.)

Defendants submit the declaration of Josh Allen, RN, Certified Assisted Living Nurse (C-AL). He has approximately 28 years of experience in the operations of assisted living communities. Specifically, with relation to COVID-19, he was retained by the California Department of Social Services (CDSS) as

an expert consultant on COVID-19 preparedness and response in assisted living communities from 2019 to 2024.

Mr. Allen notes that Marat was admitted to Traditions on March 27, 2020 – eight days after California issued its statewide shelter-in-place order. He explains that The Reutlinger developed “comprehensive, CDC-sourced COVID-19 mitigation policies that were consistent with the industry standard of care during the relevant period.” (¶ 13.) These protocols included universal mandatory masking for all direct care staff. (¶ 13 a.) Mr. Allen confirms that despite these protocols, a “CDSS Community Care Licensing citation confirms, that on August 21, 2020, Mr. Katz’s caregivers were observed not wearing required PPE while providing care to him.” (¶ 15.) This was a “violation of [The Reutlinger’s] own written policies and of the applicable standard of care.” (*Ibid.*)

Mr. Allen contends that this citation reflects a “single-date observation,” and does not establish that “PPE non-compliance was a widespread, systematic, or longstanding practice” at The Reutlinger during the relevant time. (¶ 15 a.) Mr. Allen does not explain or opine as to the actual day-to-day operations at The Reutlinger but merely discusses their protocols and the fact that a single citation was received.

Defendants also present the declaration of Morgan Katz, M.D., who is an infectious disease physician and Associate Professor of Infectious Disease at John Hopkins University. He has extensive experience working with COVID protocols and procedures, specifically at nursing homes. He outlines the series of events and COVID testing for Marat during his stay at The Reutlinger.

- July 17: COVID test due to a positive case in the facility
 - Negative results received July 24
- August 19 – fall, taken by ambulance to San Ramon Medical. At Medical Center for about 5 hours.
- August 22 – COVID test at 9 a.m. due to positive case in the facility reported August 21.
 - Negative results received August 26
- August 22 – about 6 p.m. found unresponsive in room – taken to San Ramon Medical.
- August 23 – about 4 p.m. another positive case of COVID at Reutlinger reported.
- August 23 – Marat transferred to John Muir – tested for COVID
 - Positive result
- August 23 – September 15: Marat has continued problems and continues to receive treatment at John Muir
- September 15 – family elects to proceed with comfort care due to his poor prognosis. Marat dies that day.

Dr. Katz opines that the care provided by Reutlinger satisfied the applicable standard of care. (¶ 29.) He indicates that he reviewed all the policies and procedures and opines that there “is no evidence of

a breach in infection prevention policy or practice at Reutlinger Communities that led to Mr. Katz's outcome." (¶ 30.) He does not explain, however, how he came to the conclusion that there is "no evidence of a breach" based solely on a review of the policies and protocols. He does not indicate that he inspected the facility during the relevant time, nor that he was made aware of the actual day-to-day **implementation** of the policies and procedures.

Dr. Katz indicates that it is "impossible to determine the definitive cause of [Marat's] exposure to the SARS-CoV-2 virus, particularly given the fact that he was living in an open memory care unit where masking and confining residents to their room is very challenging." (¶ 31.) This statement appears to undermine his conclusion that there is 'no evidence' of a breach of the protocols. Given the 'challenging' conditions and other evidence discussed below, it would appear that there were breaches of the protocols. Notably, Dr. Katz's declaration indicates that he did not review the pictures submitted by Ms. Mirman or the deposition of Ms. Catalan which include the descriptions and pictures of the lack of use of PPE at the facility.

The declaration of Jay Luxenberg, M.D., also presented by Defendants, indicates that he believed that The Reutlinger implemented proper protocols during the relevant time. (¶ 19.) Without discussing what actually occurred there, he opines that "isolated lapses in PPE compliance does not establish causations or negligence," in that they were common across healthcare settings. (¶ 20.) Notably, he does not opine that Marat did not acquire COVID while at The Reutlinger. Instead, he states that there is no reliable medical basis to conclude that "any alleged PPE deviation caused [Marat's] infection, as opposed to the well-known background risk in all similar facilities at that time." (¶ 22.)

As with Dr. Katz's declaration, there is no statement that Marat did not (or could not have) acquired COVID while at The Reutlinger. Instead, his opinion discusses protocols and procedures and 'isolated lapses.' There is no discussion as to whether the day-to-day procedures at The Reutlinger included only 'isolated lapses' or if there were continuing and pervasive lapses. Nor is there a discussion as to at what point the 'lapses' are no longer 'isolated.'

Plaintiffs submit the declaration of Peter Chin-Hong, M.D. He is board certified in Internal Medicine and Infectious Disease and has practiced clinical infectious diseases for over twenty years. His review of the records led him to his explanation as to how Marat acquired the COVID virus. He notes that a caregiver at The Reutlinger ("LA") worked in the Traditions unit that housed Marat on August 7-8, 11-14 and 17, 2020. (¶ 27.) Her shifts were 8.5 hours with a break. On August 18, she reported a fever and was given a COVID-19 test. The test came back positive on August 21.

These dates in early and mid-August coincide with when Marat was diagnosed with COVID and began having COVID related symptoms. Following Marat's admission to the hospital, The Reutlinger continued to have employees and residents test positive for COVID. A housekeeper tested positive on August 24. (¶ 33.) Two residents were tested on August 22, with positive results coming back on August 27. (*Ibid.*)

Dr. Chin-Hong notes that the materials he reviewed "describe multiple concerns suggesting that implementation did not consistently match the facility's written policies, which required all employees and visitors to wear surgical masks at all times and for residents to wear masks while in the presence of caregivers. (¶ 36.) "From an infectious disease perspective, these observations are

medically significant because outbreaks commonly arise not from the absence of written policies but from repeated failures in implementation. Multiple relatively small deviations from accepted infection-prevention practices may combine to produce substantial increases in transmission risk.” (¶ 37.)

“Here, the temporal relationship between infected staff and residents, the clustering of infections within a relatively small residential unit, documented deficiencies in infection-control implementation, and the absence of a more persuasive alternative exposure together support the conclusion that Mr. Katz more likely than not acquired SARS-CoV-2 within the Traditions memory care unit.” (Chin-Hong Decl. ¶ 26.)

“While any isolated lapse might not necessarily result in transmission, repeated deficiencies occurring during an active outbreak increase the probability of healthcare worker-to-resident transmission. This is especially important in a memory care unit where prolonged close contact between caregivers and residents is unavoidable and residents cannot reliably participate in their own infection prevention by masking.” (¶ 45.)

He also found it significant that the housing unit was relatively small – housing approximately nineteen residents. (¶ 55.) However, during the month of August several cases of COVID were documented within the unit. A Traditions caregiver (“LA”) tested positive, as did a Traditions resident (“CG”) and an Assisted Living resident (“PC”), and a Reutlinger housekeeper who worked in the Traditions unit. (*Ibid.*) He notes that the “temporal clustering of infections among residents and staff within the same facility is epidemiologically significant.” (*Ibid.*)

Taken together, all the evidence led Dr. Chin-Hong to determine that Marat “more likely than not acquired SARS-CoV-2 within the Traditions unit.” (¶ 58.)

Dr. Chin-Hong also addressed Defendants’ theory that Marat could have acquired COVID while at the hospital. He notes that Marat was at San Ramon on August 19 for about four and a half hours – which is a relatively small window. Especially, compared to the full-time living situation at The Reutlinger where there were known COVID positive people. This was also during the time when complaints about lack of PPE were occurring.

He also addresses Defendants’ expert’s positions. While he generally agrees with “several general principles contained in those reports,” he differs in the “application of those principles to the facts of this case.” (¶ 72-73.) He notes that the defense experts (as noted above) place “substantial emphasis on the existence of written infection control policies.” (¶ 74.) Dr. Chin-Hong notes, however, that “effective infection prevention is determined by implementation rather than documentation,” and there is sufficient evidence to establish that the policies and procedures were not properly implemented and/or enforced.

Plaintiffs also submit the declaration of David J. Farrell, a Licensed Nursing Home Administrator (LNHA) with over 34 years of experience. His declaration reiterates the series of events outlined above regarding the other COVID cases in the unit and how that credibly led to Marat’s acquiring the COVID virus. (¶¶ 11-27.) He also directly addresses the opinions of Mr. Allen outlined above. While Mr. Farrell acknowledges there were challenges regarding the availability of PPE and the like, it was not as dire as Mr. Allen appears to indicate. (¶ 28.) He also agrees that The Reutlinger developed

policies and procedures that “were aligned with the infection control standards at that time.” (§ 29.) He opines, however, that Mr. Allen “fails to acknowledge that the defendants did not follow their own COVID-19 mitigation policies and procedures....” (*Ibid.*)

Mr. Farrell also disagrees with Mr. Allen and Dr. Katz’s opinions that the ‘breaches’ in the protocols were not systematic and did not lead to Marat’s infection. He notes that neither of Defendants’ experts address the evidence related to those breaches but instead generalize without review of the specific facts in this case. (§ 30-31.)

The evidence includes a note signed by seven The Reutlinger employees which appears to confirm that there were insufficient masks for all the workers. (P’s Ex. 66.) It states in part: “We want enough of N95 masks. Yesterday we had to borrow from Skilled because we didn’t have any. ... It is not acceptable.” (*Ibid.*) Ms. Catalan, an employee during the relevant time, also testified that Personal Protective Equipment (PPE) was not timely refilled and they often did not have enough masks and the like. (Catalan Depo. at 28:5-25.)

Julia Mirman also submits a declaration wherein she indicates that she would Facetime with Marat while he was at The Reutlinger. She submits several photo screenshots from those interactions which show caregivers within close proximity of Marat improperly wearing face masks (i.e. not covering their nose and mouth) or not wearing a mask at all. Below is just a sample:



It is worth nothing that according to Mr. Allen’s and Dr. Katz’s declarations, neither of them reviewed the pictures submitted by Ms. Mirman or the deposition of Ms. Catalan which include the descriptions and pictures of the lack of use of PPE at the facility.

Summary and Conclusion Regarding Negligence Claim

The general rule is that causation is a question of fact not resolvable on summary judgment; “[t]he issue of causation may be decided as a question of law only if, under undisputed facts, there is no

room for a reasonable difference of opinion.” (*Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1687.)

Defendants argue that there is no evidence that their negligence caused Marat’s COVID-19 infection. Their experts explain that, given the uniqueness of the situation and the ever-changing landscape of new information, The Reutlinger implemented policies and procedures that were aligned with the infection control standards at that time and in accordance with CDC guidance. Plaintiffs do not necessarily disagree with that position. They do, however, argue that the policies and procedures were not effectively implemented – and the failure to properly follow the policies and procedures is what led to Marat’s acquiring the COVID-19 virus.

Plaintiffs submit evidence showing that the staff were concerned about the lack of PPE. There is also photographic evidence of caregivers not wearing, or improperly wearing, masks while in direct contact with Marat. There is also evidence that several residents and caregivers tested positive for COVID during the same timeframe as Marat. All of this could lead a trier of fact to determine that Defendants’ failure to properly execute its policies and procedures led to Marat’s illness. Marat’s COVID had to come from somewhere. Given that he was confined to The Reutlinger during the relevant time, persons at The Reutlinger tested positive for COVID during the same timeframe, and there is evidence that the caregivers were not properly wearing masks during that time, plaintiffs present a credible theory as to how he contracted the virus.

Defendants attempt to argue that Marat could have acquired the illness on his trips to the hospital. As noted above, the first trip lasted less than five hours. This is an incredibly small fraction of the time at issue – being the mid to late weeks in August. There is also no evidence that Marat was ever exposed to the COVID-19 virus during this trip. Defendants present no evidence of any other positive tests for people at the hospital, nor any evidence suggesting that the hospital personnel were not properly using PPE. In other words, there is no evidence showing how Marat could have acquired the virus while at the hospital.

“‘Speculation ... is not evidence’ that can be utilized in opposing a motion for summary judgment.” [citation] Speculation also differs from a reasonable inference. ‘When opposition to a motion for summary judgment is based on inferences, those inferences must be reasonably deducible from the evidence, and not such as are derived from speculation, conjecture, imagination, or guesswork.’” (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 459.)

Based on the above, Defendants’ motion for summary adjudication of the negligence cause of action is **denied**.

Plaintiffs also appear to assert a theory of liability related to Defendants prescribing of antipsychotic drugs. They allege that Marat was previously prescribed these drugs and had a very adverse reaction. As such, Defendants were informed not to give them to Marat. Despite these warnings, Defendants continued to prescribe and administer the drugs which caused and/or contributed to Marat’s falls. The injury contributed to Marat’s susceptibility the COVID virus and/or his cause of death.

The Court need not address these alternative arguments at this time given the Court’s findings discussed above that support Plaintiff’s negligence cause of action.

Wrongful Death

“The elements of a cause of action for wrongful death are the tort (negligence or wrongful act), the resulting death, and the damages, consisting of the *pecuniary loss* suffered by the *heirs*.” (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968, *italics* in original.)

Defendants’ position regarding this cause of action is that because Plaintiffs have failed to establish the other causes of action – in particular the negligence cause of action – this claim also fails. (Motion at Sec. 8.) As stated above, the Court denied Defendants’ request for summary adjudication as to the negligence cause of action. As such, Plaintiff’s have properly asserted the tort, i.e. negligence. Marat’s acquiring of COVID led to his death according to the Death Certificate as well as Defendant’s own expert. As Dr. Luxenberg opine: “Mr. Katz’s death was caused by **hypoxic respiratory failure due to COVID-19....**” (¶ 11e emphasis in original.)

Accordingly, Defendants’ request for summary adjudication of the wrongful death cause of action is also **denied**.

Elder Abuse – Neglect

The Elder Abuse and Dependent Adult Civil Protection Act (the “Act”) provides in part that where it is proven “by clear and convincing evidence that a defendant is liable for physical abuse ..., [or] neglect ... [of an elderly or dependent adult], and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of the abuse,” the plaintiff is entitled to enhanced damages. (Wel & Inst. Code §15657.) Plaintiffs claim is based on allegations of ‘neglect’ of Marat.

The elements of a cause of action for Elder Abuse based on neglect are: (1) defendant had a substantial caretaking or custodial relationship with plaintiff, involving ongoing responsibility for plaintiff’s basic needs, which an able-bodied and fully competent adult would ordinarily be capable of managing without assistance; (2) the plaintiff was 65 years of age or older while in defendant’s care or custody, (3) that defendant failed to use the degree of care that a reasonable person in the same situation would have used in providing for plaintiff’s basic needs, (4) that plaintiff was harmed, and (5) defendant’s conduct was a substantial factor in causing plaintiff’s harm. (See Welf. & Inst. Code §§ 15610 *et seq.*; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783; CACI 3103.)

Defendants focus their argument on elements 3 and 5 – arguing that the actions alleged against them do not constitute ‘neglect’ under the statute and there is no evidence that their actions were a substantial factor in causing Marat’s injuries and death.

“Neglect includes, but is not limited to, all of the following: ... (2) Failure to provide medical care for physical and mental health needs. ... (3) Failure to protect from health and safety hazards....” (Cal. Welf. & Inst. Code §15610.57(b).)

“[T]he acts proscribed by [the Act] do not include acts of simple professional negligence, but refer to forms of abuse or neglect performed with some state of culpability greater than mere negligence.” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 32.) In cases where the party argues that proper care was withheld (as is the case here), “the trier of fact must determine whether there is a significant pattern of withholding portions or types of care.” (*Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 90.) “A significant pattern is one that involves repeated withholding of care and leads to the conclusion

that the pattern was the result of choice or deliberate indifference.” (*Ibid.*)

Here, the alleged ‘withholding of care’ pertains to the failure of the caregivers to don proper PPE including masks when caring for Marat. The evidence discussed above indicates that while The Reutlinger may have enacted policies and procedures that meet the standards for the time there was a failure to adequately implement them and ensure that the staff were actually abiding by the policies. It is for the trier of fact to determine if the failures to wear proper PPE were repeated and pervasive enough to establish that the actions were the result of more than mere negligence.

Enhanced Remedies

Plaintiffs seek enhanced remedies under the Elder Abuse Act. To recover the enhanced remedies, the “plaintiff must prove ‘by clear and convincing evidence’ that ‘the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of’ the neglect.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405.) In a case such as this where the enhanced remedies are sought against a corporate employer, the “standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied...” (Wel. & Inst. Code § 15657 (c).)

An award of punitive damages against a corporation “must rest on the malice of the corporation’s employees.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) The “law does not impute every employee’s malice to the corporation.” (*Cruz*, supra, 83 Cal.App.4th at 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Code Civ. Proc. § 3294, subd. (d).)

A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.) ‘Corporate policy’ is “the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

Defendants note the lack of any evidence identifying any particular officer, director, or managing agent that acted with recklessness, oppression, fraud, or malice. Plaintiffs do not even address this argument in their Opposition.

The only reference in Plaintiffs’ Opposition to a person in such a role is the following: “In August 2020, Arlisha Tillman, the SEIU representative for care givers at Reutlinger, asked to have a meeting with Jay Zimmer, the CEO of Reutlinger, to discuss employee complaints regarding management’s handling of Covid 19.” (Opp. at 9:2-4.) There is no citation to any evidence to support this statement.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) Even if there were evidence of this letter, it does not show that Mr. Zimmer was aware of the particular issues, that he had any direct oversight of those issues, or that he was involved in the implementation thereof.

Plaintiffs fail to point to any evidence to support their claim for the enhanced remedies, including attorneys’ fees and costs. Accordingly, Defendants’ motion for summary adjudication of this issue is

granted.

Deficient Discovery Responses

Defendants argue that they are entitled to summary judgment/adjudication based on Plaintiffs' deficient discovery responses, citing *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573. Specifically, it notes that Plaintiffs' responses related to requests seeking information pertinent to causation were never properly responded to. Instead, there were just blanket objections and statements that the information was subject to expert disclosures.

As stated in *Union Bank*:

“[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2). Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.”

Plaintiffs' factually devoid discovery responses could provide Defendants with the ability to shift the burden to Plaintiff to present facts which show there is a triable issue of material fact. As outlined above, the Court found that Plaintiffs have met that burden. As such, Defendants' argument that they are entitled to summary judgment due to Plaintiffs' deficient discovery responses is without merit.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See Code Civ. Proc. § 437c(q).)

Plaintiffs' Objections

Plaintiffs' objections are all based on the assertion that portions Defendants' expert declarations are based on inadmissible evidence because (at least in part) the medical records which were reviewed and relied upon by those experts were not submitted to the Court. As such, the expert declarations are based on inadmissible hearsay and should properly be disregarded by the Court. Plaintiffs' cite *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735 as support for their position.

Garibay involved a medical malpractice claim related to a tubal ligation procedure that was allegedly improperly performed. Defendants moved for summary judgment based exclusively on the declaration of their medical expert who reviewed Plaintiffs' medical records and opined that the defendant doctor complied with the applicable standard of care. Plaintiffs objected to the declaration based on hearsay, lack of foundation, and lack of personal knowledge – among other grounds. They asserted that the declaration was improper expert testimony because it was based on the records which were not properly before the court. Notably, the Plaintiff did not file a substantive opposition or submit any of its own evidence in support of its opposition. The trial judge sustained two of the objections but overruled the rest – allowing the declaration and granting summary judgment.

The Court of Appeal reversed noting that although hospital and medical records are hearsay, they can be admitted under the business records exception if they are properly authenticated. Without those records being authenticated and before the Court, the expert's declaration had no evidentiary basis.

The court found that the expert had “no personal knowledge of the underlying facts of the case, and attempted to testify to facts derived from medical and hospital records which were not properly before the court. Therefore, his declaration of alleged facts had no evidentiary foundation.”

Here, as noted by Defendants on Reply, the records are before the Court. Plaintiffs submitted the records of the Reutlinger Community, as well as Marat’s records from John Muir, San Ramon Regional Medical Center, and San Ramon Valley Fire Protection, among others. Plaintiffs’ own experts indicate they reviewed and relied upon these same documents. As such, these documents are ‘properly before the court,’ unlike in *Garibay* where they were submitted to the court at all.

Plaintiffs Objections 1-9: Overruled.

Defendant’s Objections

“Each written objection ***must be numbered*** consecutively” (Cal. R. Ct. 3.1354(b).) Defendant fails to include this basic information.

Defendants’ Objections 1-24: Overruled.

Conclusion

Defendants’ motion for summary judgment is **denied**. Defendants’ motion for summary adjudication is:

- **Denied** as to the negligence cause of action.
- **Denied** as to the wrongful death cause of action.
- **Denied** as to the elder abuse – neglect cause of action.

Granted as to the request for enhanced remedies related to the elder abuse – neglect cause of action.

17. 9:00 AM CASE NUMBER: N26-0572

CASE NAME: PETITION OF: JOSE GRACIANO HUEZO

***HEARING ON MOTION IN RE: PETITION**

FILED BY:

TENTATIVE RULING:

Introduction

Petitioner Jose Graciano Huezo (“Petitioner”) filed the instant petition seeking relief from the claim presentation requirements for a cause of action that accrued when his car was impounded by the Richmond Police Department in February 2023. On April 3, 2026, Petitioner filed the instant petition seeking relief from this Court from the claim presentation requirements.

For the reasons discussed below, the Court **denies the Petition for Relief from Claim Presentation Requirement.**

Factual Background

The claim arises from the towing and subsequent loss of Petitioner's 1995 Volvo on or about February 1, 2023, following involvement with Richmond Police Department officers. (Petition ¶ 3.)

After being released, Petitioner was informed that the vehicle could be retrieved at a later time. (Petition ¶ 4.) Petitioner was not provided written lien notice, certified mail notice, or any documentation explaining storage deadlines, lien procedures, or disposition of his 1995 Volvo. (Id.) Petitioner did not receive any mailed notice regarding the vehicle's disposition. (Id.)

The only written document Petitioner received during this period was an Order for Return of Property dated December 1, 2023, relating to a separate 2015 Volkswagen Passat. (Petition ¶ 5.) Petitioner reasonably believed the 1995 Volvo remained in storage and available for retrieval. (Petition ¶ 5.)

During the period from 2023 through 2025, Petitioner was receiving medical and mental health treatment, and his medical records reflect depression, anxiety, and significant stress related to legal and property issues which impaired Petitioner's ability to manage administrative and legal matters during that period. (Petition ¶ 9.)

On October 8, 2025, Petitioner contacted the Records Division and was informed that no retrievable record or recovery option could be located. (Petition ¶ 6.) This was the first time Petitioner understood that the vehicle could not be recovered. (Id.) Petitioner asserts he acted promptly after discovery on October 8, 2025, that his vehicle could not be recovered and submitted the late claim application within a reasonable time thereafter. (Petition ¶ 10.)

Procedural Background

a. Petitioner's Small Claims Action

On November 12, 2025, Petitioner filed a small claims action against the City claiming lost property in the amount of \$3,500. (Request for Judicial Notice ("RJN") ¶ 1, Exh. A.) He pleaded he presented a claim to the City on November 1, 2025. (RJN ¶ 1, Exh. A at ¶ 8.) However, at the hearing on January 14, 2026, Petitioner dismissed his case without prejudice in order to pursue a claim with the City. (RJN ¶ 2, Exh. B.)

b. Petitioner's Government Claim

On December 23, 2025, Petitioner presented a claim to the City by mail. (RJN ¶ 3, Exh. C.) According to the claim form, in February 2023, a Richmond police officer stopped Petitioner while driving to work. During the stop, his car was taken. He claimed fair market price of \$2,500 for the vehicle. (RJN ¶ 3, Exh. C.) Because the claim was presented more than six months after the accrual of Petitioner's cause of action in February 2023, on January 8, 2026, the City served a notice of return of late claim without action consistent with Government Code section 911.3. (RJN ¶ 4, Exh. D.)

c. Petitioner's Application to Present a Late Claim

On January 22, 2026, Petitioner presented an application for leave to present a late claim by mail. (RJN ¶ 5, Exh. E.) According to the application, in February 2023, his vehicle was taken or towed at the direction of the Richmond Police Department during a traffic stop. (RJN ¶ 5, Exh. E.) He claimed he was not provided documentation and despite attempts to obtain records or recover his vehicle, records could not be located and the vehicle was never returned. (RJN ¶ 5, Exh. E.) He explained the reason for the delay in presenting the tort claim was "mistake, excusable neglect, and lack of knowledge of the Government Claim requirement" and because he "contacted the Richmond Police

Department seeking records and recovery of my vehicle and reasonably believed the matter was being handled internally.” (RJN ¶ 5, Exh. E.) He claimed he “acted promptly once [he] learned a Government Claim was required.” He attached no proposed tort claim to the application, which is required under Government Code section 911.4(b).

Because the application was presented more than a year after the accrual of Petitioner’s cause of action in February 2023, on February 9, 2026, the City served a notice of return of the late claim application without action because the application was incomplete for not attaching the proposed claim and was not presented “within a reasonable time not to exceed one year after the accrual of the cause of action” as set forth in Government Code section 911.4(b). (RJN ¶ 6, Exh. F.)

Legal Standard

Pursuant to Govt. Code §§ 905, 910 and 911.2, a claim against a public entity for money or damages for death or for injury to person or to personal property shall be presented within six months after the accrual of the cause of action.

In proceeding on a petition for relief, the petitioner bears the burden of proving two elements by a preponderance of the evidence: first, that his or her application to the public entity for leave to file a late claim was presented within a reasonable time, not to exceed that specified in subdivision (b) of Section 911.4; and second, that one of four statutory grounds on which the court may grant relief is present. (*Rivera v. City of Carson* (1981) 117 Cal.App.3d 718, 723.)

Govt. Code 911.4 provides:

(a) When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.

(b) The application shall be presented to the public entity as provided in Article 2 (commencing with Section 915) within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim. The proposed claim shall be attached to the application.

Pursuant to Govt. Code § 945.4: “Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon by the board.”

“A trial court has broad discretion in ruling on a petition for relief from the claim-filing requirement as long as the issue is whether the late claim was presented within a ‘reasonable time’ not to exceed one year after the accrual of the cause of action.” (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1313.) “When the underlying application to file a late claim is filed more than one year after the accrual of the cause of action, the court is without jurisdiction to grant relief under ... section 946.6.” (*Last Frontier Healthcare Dist. v. Superior Court* (2019) 33 Cal.App.5th 492, 497; citing *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1779.)

Analysis

Petitioner's Application to File a Late Government Claim Was Made over One Year After the Accrual of the Cause of Action

Before a court may grant relief from the claim requirements, a petitioner must establish that the application for late claim was presented within a reasonable time, not to exceed one year after the accrual of the cause of action. (Gov. Code § 946.6; *Reyes v. County of Los Angeles* (1988) 197 Cal.App.3d 584, 590.) This showing must be made by a preponderance of the evidence. (*Dep't of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1293.)

When a petitioner cannot demonstrate that an application for late claim was presented within one year, the court has no jurisdiction to grant relief. (*Greyhound Lines, Inc. v. County of Santa Clara* (1986) 187 Cal.App.3d 480, 488; see also *Brandon G. v. Gray* (2003) 111 Cal.App.4th 28, 34 ("The court, however, lacks jurisdiction to grant relief if the application to file a late claim was filed more than one year after the cause of action accrued."))

The California Supreme Court has stated that "[g]enerally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.'" (*O.B. v. Los Angeles Unified School Dist.* (2025) 113 Cal.App.5th 930, 941; citing *Rubenstein v. Doe No. 1* (2017) 3 Cal.5th 903, 911.) However, accrual of a cause of action is postponed until the plaintiff discovers, or has reason to discover, the cause of action. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them. (*Id.*)

The Petition states that Petitioner lost his vehicle on February 1, 2023, which is when his claim accrued against the City. Thus, Petitioner had until February 1, 2024, to present his late claim application to the City. According to the City's records, Petitioner did not meet his deadline.

Late claim applications are deemed presented on the day they are deposited in the mail. (Gov. Code § 915.2.) The envelope Petitioner's mailed in late claim application was postmarked January 22, 2026. (RJN ¶ 5, Exh. E.) This is over two years after Petitioner's cause of action accrued. Petitioner cannot cure this to avoid a jurisdictional prerequisite. Accordingly, this Court does not have jurisdiction to grant this Petition.

Conclusion

For the reasons analyzed above, Court **denies the Petition for Relief from Claim Presentation Requirement.**

18. 9:00 AM CASE NUMBER: N26-0671
CASE NAME: CLAIM OF:AVA AVALOS
*HEARING ON MINOR'S COMPROMISE
FILED BY: AVALOS, JAVIER
TENTATIVE RULING:

Given the amended filing, this line appears duplicative.

19. 9:00 AM CASE NUMBER: N26-0671
CASE NAME: CLAIM OF:AVA AVALOS
*HEARING ON MINOR'S COMPROMISE AMENDED

FILED BY: AVALOS, JAVIER

TENTATIVE RULING:

The Court has reviewed the request and finds it lacking in medical records (only billing records were submitted). The Court will continue this Motion to September 24, 2026, at 9 a.m. to allow counsel to submit the necessary supplemental documentation.

20. 9:00 AM CASE NUMBER: N26-0720

CASE NAME: CLAIM OF: LEVI SINGER

***HEARING ON MINOR'S COMPROMISE**

FILED BY: SINGER, SCOTT

TENTATIVE RULING:

The Court has reviewed the request and finds it lacking in medical records and a fee agreement between counsel and the client/Guardian ad Litem. The Court will continue this Motion to September 24, 2026, at 9 a.m. to allow counsel to submit the necessary supplemental documentation.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF JOSE BARRERA GALEANA'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE**

FILED BY: ADERMAN, BRANT

TENTATIVE RULING:

Before the Court is Defendant Brant Aderman's Motion to Compel Plaintiff Jose Barrera Galeana's Further Responses to Form Interrogatories, Set One. This case involves a motor vehicle accident.

The sole issue on this motion is Plaintiff's failure to respond substantively to a single Form Interrogatory. Defendant propounded a form interrogatory regarding prior felony convictions. Plaintiff served objections only, as follows: "The likelihood that discovery will lead to admissible evidence is outweighed by burden, expense, or intrusiveness (CCP §2017.020(a)), the discovery is unreasonably cumulative or duplicative (CCP §2019.030(a)(1)), the discovery is obtainable from another, less burdensome source (CCP §2019.030(a)(1)), or the party is using discovery in a way that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. CCP § 2023.010(c))."

The vast majority of these objections are incredibly inapposite. There can be no showing that listing prior felony convictions would be burdensome or expensive. Even an extremely long rap sheet would not be burdensome to disclose. Nor can it be "unreasonably cumulative or duplicative"—the Court cannot understand that objection at all. Plaintiff fails to explain how a civil defendant could obtain this information from "another, less burdensome source." Finally, this *form* interrogatory is not inherently an improper use of discovery. As Defendant properly indicates, felony convictions may be relevant for

credibility purposes.

Importantly, what Plaintiff entirely failed to do was even answer this Interrogatory in part. A good faith response would have provided only the admissible scope of felony convictions—if any—under Evidence Code sections 788 and 352 (as interpreted by case law) and been explicit as to the limitations. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 (“A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”).) There would even have been the opportunity to keep this information between only the parties until trial.

Plaintiff’s wholesale failure to respond to this inquiry was not in good faith. His various objections are inapposite. Defendant’s request for sanctions in the amount of \$1,680.00 is appropriate here.

Defendant’s Motion to Compel is therefore **granted**. Plaintiff must amend his response to include felony convictions as requested within 15 days of this order. He must further pay \$1,680.00 to counsel for Defendant within 30 days of this order.

22. 9:01 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION FOR DISCOVERY TO COMPEL PLAINTIFF JOSE BARRERA GALEANA'S FURTHER RESPONSE TO REQUESTS FOR PRODUCTION, SET ONE, OR, IN THE ALTERNATIVE, REQUEST TO COMPEL PLAINTIFF TO SIGN AN AUTHORIZATION FORM TO ENABLE DEFENDANT TO OBTAIN THE REQUEST RECORDS INDEPENDENTLY**

FILED BY: ADERMAN, BRANT

TENTATIVE RULING:

Before the Court is Defendant Brant Aderman’s Motion to Compel Plaintiff Jose Barrera Galeana’s Further Responses to Requests for Production of Documents, Set One. This case involves a motor vehicle accident.

The sole issue in this Motion is a single request for production of documents. Initially Defendant sought for Plaintiff, in the alternative, to provide authorization for Defendant to acquire the documents by subpoena. In reply, Defendant appears to have abandoned that request.

Defendant seeks documents relating to phone calls or text messages made or received on Plaintiff’s cell phone from one hour before and one hour after the accident. Plaintiff responded: “Pursuant to Civ. Proc. Code § 2031.230 this Responding Party is unable to comply with the particular demand for inspection, copying, testing, or sampling. This Responding Party affirms that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. The inability to comply is due to the particular item or category has never existed, or is not or has never been, in the possession, custody, or control of this Responding Party. Investigation and discovery are continuing with regards to documents relevant to this request.”

Defendant complains that Plaintiff has failed to comply with the request for 3 reasons: (1) a response stating “has never existed, or is not or has never been” in his possession is selecting too many of the options available under Code of Civil Procedure section 2031.230; (2) he fails to give the name and address of a person or organization who may have this information; and (3) other information suggests that the lack of responsive documents is untruthful.

The first argument is unavailing. If Plaintiff searched his phone and found no records, he would be unable to know whether there were none or whether they never existed. Both reasons are possible. There is nothing inherently non-compliant about this response.

The second argument is accurate, albeit relatively pointless. While Plaintiff did fail to identify AT&T by name and address, Defendant was clearly aware of this information when he issued a now-withdrawn subpoena. If he truly desires this information to be supplemented, Plaintiff must do so.

The third argument is additionally not persuasive. Although it appears that Plaintiff was in contact with an officer after the incident, as the Court understands the chain of events, there is no reason to believe that he is necessarily lying that he has no record of such communications *within one hour* of the car accident.

Both parties’ requests for sanctions are denied.